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CITY OF BERKELEY

BERKELEY CITY COUNCIL REGULAR MEETING

MAY 6, 2025

>> HELLO, EVERYBODY. GOOD EVENING. IT'S 6:06 P.M. CLERK, JUST WANT TO MAKE SURE WE'RE OKAY.

>> NOT QUITE. SORRY, FOLKS WE'RE SETTING UP --

>> TEST, TEST. TEST. CAPTIONER TEST.

>> Mayor A. Ishii: WE'VE BEEN HAVING SOME TECHNICAL DIFFICULTIES. THANK YOU, CLERK.

>> Clerk: OKAY. TEST. TEST. OOP. WHAT'S GOING ON THERE? TEST. TEST. TEST CAPTIONER, TEST. TEST. TEST, CAPTIONER TEST. TEST. TEST. CAPTIONER, TEST. TEST. TEST. TESTING. TEST. TESTING. TEST. TESTING. TEST. TESTING. TEST. TESTING.

>> Mayor A. Ishii: HELLO, EVERYONE. GOOD EVENING. THANK YOU FOR JOINING US. TONIGHT IS TUESDAY MAY 6, 2025, AND CALLING THE MEETING INTO SESSION OF THE BERKELEY CITY COUNCIL MEETING. SO WE WOULD LIKE TO START WITH THE ROLL, PLEASE, CLERK.

>> Clerk: OKAY. COUNCILMEMBER KESARWANI. HERE. TAPLIN. PRESENT. BARTLETT.

>> HERE.

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>> TREGUB. HERE.

>> LUNAPARRA. HERE.

>> AND MAYOR ISHII.

>> Mayor A. Ishii: IT'S THE FIRST OF THE MONTH AND WE'LL READ OUR LAND ACKNOWLEDGEMENT STATEMENT. THANK YOU, COUNCILMEMBER.

>> THE CITY OF BERKELEY RECOGNIZES THAT THE COMMUNITY RELIVE IN WAS BUILT ON THE TERRITORY OF THE XUCYUN, THE ANCESTRAL AND UNCEDED LAND OF THE CHOCHENYO OHLONE PEOPLE, THE ANCESTORS AND DESCENDANTS OF THE SOVEREIGN VERONA BAND OF ALAMEDA COUNTY. THIS LAND WAS AND CONTINUES TO BE OF GREAT IMPORTANCE TO ALL OF THE OHLONE TRIBES AND DESCENDANTS OF THE VERONA BAND. AS WE BEGIN OUR MEETING TONIGHT, WE ACKNOWLEDGE AND HONOR THE ORIGINAL INHABITANTS OF BERKELEY, THE DOCUMENTED 5,000-YEAR HISTORY OF A VIBRANT COMMUNITY AT THE WEST BERKELEY SHELLMOUND, AND THE OHLONE PEOPLE WHO CONTINUE TO RESIDE IN THE EAST BAY. WE RECOGNIZE THAT BERKELEY'S RESIDENTS HAVE AND CONTINUE TO BEN GET FROM THE USE AND OCCUPATION OF THIS UNCEDED STOLEN LAND SINCE THE CITY OF BERKELEY'S INCORPORATION IN 1878. AS STEWARDS OF THE LAWS REGULATING THE CITY OF BERKELEY, IT IS NOT ONLY VITAL THAT WE RECOGNIZE THE HISTORY OF THIS LAND, BUT ALSO RECOGNIZE THAT THE OHLONE PEOPLE ARE PRESENT MEMBERS OF LATIN AMERICA AND OTHER EAST BAY COMMUNITIES TODAY. THE CITY OF BERKELEY WILL CONTINUE TO BUILD RELATIONSHIPS WITH THE LISJAN TRIBE AND TO CREATE

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MEANINGFUL ACTIONS THAT UPHOLD THE INTENTION OF THIS LAND ACKNOWLEDGEMENT.

>> Mayor A. Ishii: THIS EVENING WE'RE GOING TO PUSH BACK THE ADJOURNMENT FOR JOHN BOLARIER HIS FAMILY WON'T BE ABLE TO COME UNTIL A LATER MEMORY AND THOUGH WE ADJOURNED IN THE MEMORY OF MR. NESMITH AND I'LL ASK THE CLERK TO HELP US. THANK YOU FOR JOINING US THIS EVENING. I APPRECIATE IT.

>> I WANTED TO THANK THE COUNCILMEMBERS AND IGOR AND I'D LIKE TO FOLLOW-UP WITH WORDS ABOUT MY HERO. HE WAS KNOWN AS A SUPER EFFECTIVE POLITICAL STRATEGIST FOR THE ENVIRONMENT AND I'LL SHOW HIS SECRET POTION FOR SUCCESS, RESPECT AND LOVE YOUR OPPONENT. HE WOULD TAKE HIS OPPONENTS OUT FOR TEA AND LEARN THEIR CHILDREN'S NAME AND NEVER GO FORGOT THEM AND INVITE THEM TO GET IN A BOAT WITH THEM WHERE THEY'D INEVITABLY FALL IN LOVE WITH THE RIVER OR BAY HE WAS BATTLING FOR. HE FOUGHT THE EAST BAY MUD TO PROTECT THE WILDERNESS. THAT'S THE WATER WE DRINK EVERY DAY. THAT'S THE RIVER THAT GIVES US OUR CLEAN WATER. SOME OF THE CLEANEST IN THE WORLD. HE SUED THE PANTS OFF OF THEM. HE WAS A PAIN IN THEIR ASS AND TOOK THEM ON RIVER TRIPS TO FALL IN LOVE WITH THE RIVER. HE CAME UP IN HIS WHEEL CHAIR TO SPEAK AND IN SIMPLE WORDS AS HE PRACTICED OVER AND OVER AND HE SAID THIS IS BEFORE THEY VOTED HE SAID THANK YOU FOR SAVING THE RIVER FOR THE FISH AND FOR THE BIRDS AND FOR ALL THE YOUNG PEOPLE WHO WILL

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ENJOY ITS BEAUTY FOR GENERATIONS TO COME AND THE BOARD LEAPED UP AND GAVE HIM A STANDING OVATION. THEN VOTED UNANIMOUSLY TO PROTECT THE RIVER. I HAVE ONE MORE THING TO HOLD UP BEFORE YOU, HE LOVED YOUNG PEOPLE AND THAT'S WHAT GAVE HIM HOPE FOR THE FUTURE. HE MENTORED TEENAGE RAFTING GUIDES FOR INNER SITTING OUTINGS AND MENTORED YOUNG ACTIVISTS FOR THE ENVIRONMENT AND PLAYED A CRITICAL ROLE CO-FOUNDING WITH ME, BISHOP O'DAD'S HIGH SCHOOL LIVING LAB LARGE RESTORATION PROJECT AND NOW HAS AN ENVIRONMENTAL STUDY CENTER AND ECHO SYSTEMS AND FARM AND LED FIELD TRIPS AND INTERNATIONAL SCIENCE EXPEDITIONS AND HUNDREDS MENTORED HUNDREDS AND HUNDREDS OF TEENS WHO HAVE GONE ON TO BECOME ACTIVISTS. A MONTH AGO AS HE WAS DYING, HUNDREDS OF PEOPLE CAME TO PRAY THEIR RESPECTS. AND ALL WHO CAME TOLD THEM HE HAD INSPIRED THEM TO DEDICATE THEIR LIVES TO WORKING FOR THE ENVIRONMENT, FOR JUSTICE AND FOR JOY AND TO HAVING FUN ALL THE WAY. THANK YOU FOR LETTING ME SPEAK ABOUT CHICKEN DAVID NESMITH, MY HERO.

>> Mayor A. Ishii: THANK YOU FOR SHARING THAT WITH US. I'M GLAD WE WERE ABLE TO HEAR FROM YOU THIS EVENING. SO SORRY FOR YOUR LOSS. ONE THING I NEED TO DO BEFORE WE CONTINUE ON OUR MEETING IS TO REPORT OUT FROM OUR CLOSED SESSION. CITY ATTORNEY I HAVE THE PARAGRAPH YOU GAVE ME. THE CITY INITIATED AN ACTION. ONCE FORMALLY COMMENCED THE ACTION DEFENDS AND OTHER PARTICULARS

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SHALL BE DISCLOSED TO ANY PERSON UPON IN QUERY UNLESS TO DO SO WOULD EFFECT A PARTY ON ONE OR MORE PARTIES OR THE ABILITY TO CONCLUDE EXISTING SETTLEMENT NEGOTIATIONS TO ITS ADVANTAGE. THAT COMPLETES OUR REPORT OUT FROM CLOSED SESSION. THANK YOU VERY MUCH. CITY MANAGER, DID YOU HAVE COMMENTS?

>> I HAVE ONE MADAME MAYOR. I WANT TO LET FOLKS KNOW THE TWO RELATED ITEMS WILL BE MOVED TO JUNE 17. ITEM 1 THE CAL FIRE MAP AND ITEM 9, THE FIRE CODE AMENDMENT. SO WE WANTED TO HAVE MORE TIME TO WORK WITH THE COMMUNITY ON BOTH OF THOSE AND FOR TODAY, IF YOU'RE HERE FOR THOSE WE HAVE THE ASSISTANT CHIEF ARNOLD IN THE BACK HAPPY TO TALK TO PEOPLE IF YOU'RE HERE FOR THAT.

>> Mayor A. Ishii: THANK YOU, VERY MUCH, CITY MANAGER. TO CLARIFY, ITEMS 1 AND 9 WE HAVE FOLKS THAT ARE EXPERTS YOU CAN ASK QUESTIONS IN THE BACK AND I'LL ASK YOU TO STEP OUT SINCE IT WILL PROBABLY GET NOISY AND COUNCILMEMBER BLACKABY HAS A COMMENT.

>> B. Blackaby: WE RECEIVED INFORMATION AND AS THE REPRESENTATIVE TO THE CITY COUNCIL REPRESENTING NEARLY 1800 HOUSEHOLDS IN THE HIGH FIRE SEVERITY ZONE AND THOUSANDS MORE I WANT TO MAKE SURE EVERY CONSTITUENT, EVERY NEIGHBOR WHO LIVES IN BERKELEY HAS A CHANCE TO GET THE FACT ABOUT EMBER BEFORE THE PROPOSAL RECEIVES A VOTE AND ASKS QUESTIONS AND GETS CLARIFICATION. IT'S IMPORTANT WE WORK TOGETHER AS A COMMUNITY IN

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THIS IMPORTANT EFFORT AND I WANT TO MAKE SURE WE TAKE THE TIME TO ANSWER QUESTIONS BEFORE WE MOVE FORWARD. I REFLECTED WITH A FEW PEOPLE THIS WEEK. IT'S IMPORTANT TO ME NOT THAT WE JUST PASS THE POLICY. WE COULD PASS IT TONIGHT BUT IT'S MORE IMPORTANT WE REACH THE 60%, 70% PARTICIPATION TO MAKE THE EFFORT SUCCESSFUL. THAT'S WHAT SUCCESS IS ABOUT. IT'S ABOUT BEING SAFE AND PROTECTING THE COMMUNITY. IF PEOPLING HAVE QUESTIONS AND CONCERNS LET'S EXPLAIN THE FIRE DEPARTMENT'S THINKING AND MAKE TWEAKS TO HOW TO FINANCE IT. I WANT TO MOVE EXPEDITIOUSLY TO DO THE WORK TO MAKE OUR HOMES SAFER AND MORE IMPORTANT THAN PASSING THE POLICY IS WE ALL COMMIT TO DOING THE HARD BUT NECESSARY WORK TOGETHER. TO THAT END OVER THE TIME PERIOD LET ME SHARE ONE THING QUICKLY. I DO WANT TO INVITE FOLKS TO TWO IMPORTANT EMBER WORKSHOPS. THE WHOLE REASON FOR TAKING THIS TIME, PEOPLE WANT TIME FOR QUESTIONS. LET'S GO IT. ON MAY 15 WE'RE HAVING A ZOOM WEBINAR AND QUESTIONS AND ANSWERS AND TAKE DIRECTLY THE CHALLENGES AND CONCERNS PEOPLE HAVE HAD AND GIVE PEOPLE A CHANCE TO ASK QUESTIONS. RSVP AT THE LINK, BIT .LY/MAY 27 EMBER AND DOING AN IN PERSON WORKSHOP AT NORTH BRAE COMMUNITY CHURCH. THE WHOLE POINT OF TAKING THE TIME IS DO OUTREACH AND HAVE CONVERSATION WITH THE COMMUNITY. PLEASE COME TO ONE OR BOTH OF THE MEETINGS. THE MAYOR'S GOING TO BE THERE. MANY OF OUR COLLEAGUES AND FIRE DEPARTMENT AND HEAR FROM OTHER ACADEMIC

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FOLKS WHO HAVE DONE WORK IN THE AREA AND HEAR FROM YOU. LET'S MAKE USE OF THE TIME. THANKS, MADAME MAYOR, AND CITY MANAGER.

>> Mayor A. Ishii: IF FOLKS HAVE QUESTIONS I'LL ASK YOU GO MEET OUR CHIEF AND CHIEF OUTSIDE. THANK YOU. IS OUR CITY AUDITOR HERE? DO YOU HAVE A COMMENT IF YOU'RE ONLINE? IS HE ONLINE? DO YOU SEE HER? NO? OKAY. IN THAT CASE WE'LL MOVE ON TO PUBLIC COMMENT ON NON-AGENDA MATTERS. SO FOR THE CARDS FOR IN PERSON COMMENTS WE HAVE ONE CARD FOR STEVE TRACY. FOR THE CITY MANAGER THE COMMUNICATION. OKAY. WE JUST HAVE ONE CARD THAT'S BEEN SUBMITTED FOR IN PERSON AND THAT'S STEVE TRACY. YES. THE TIME TO SUBMIT CARDS ENDS WITH THE MAYOR CALLS FOR NON-AGENDA PUBLIC COMMENT.

>> Mayor A. Ishii: ARE YOU STEVE TRACY? SIR, ARE YOU STEVE TRACY. GO AHEAD AND COME UP FOR YOUR COMMENTS.

>> Clerk: THERE'S THREE HANDS RAISED.

>> Mayor A. Ishii: YES, YOU MAY HAVE TWO MINUTES.

>> EXCELLENT. TED COUNT.

>> Mayor A. Ishii: YOU WILL NEED TO MOVE CLOSER TO THE MIC.

>> DEAD COUNT, MARCH 14, OHLONE, 21, MARCH 24, APRIL 14, 27. LAST THURSDAY, 31. IT'S GOING NOT EVEN SIDEWAYS. IT'S GOING THE WRONG WAY. I'LL BE AT THE WORKSHOP. I'M NOTE DIRECTLY IMPACTED THAT WAY BUT I DON'T DRIVE THAT WAY ANYMORE UNLESS I WANT TO LOSE MY LUNCH BUT NOW WHERE I GO EVERY DAY I'LL HAVE TO ADD A

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LINE. CIVIC CENTER GOT ONE BACK TOO. GORDIAN EASY PARK IS UP TO ONE. THE POLICE VISITED THERE MAY 1, FIVE DAYS AGO. WARN THE CAMPER TO LEAVE. SO WHAT'S THE PROBLEM? IT'S MURKY. NEIGHBORHOOD SERVICES HAS TO COME AND OFFER THEM AN ALTERNATIVE. WHAT'S THE DELIVERABLE? HOW LONG DOES THAT TAKE? ANYONE? DAYS, WEEKS, MONTHS? I'D LIKE TO KNOW THE DELIVERABLE. ANYWAY, THE NEIGHBORS THAT ARE A STONE'S THROW UP ON THE TEMPLE DRIVE WILL BE CONCERNED SOMEBODY WILL BE LIGHTING SOMETHING IN THEIR BACK YARDS. I GAVE YOU GUYS A PAPER MR. BUDDENHAGEN AND THEY WANT TO KNOW WHAT HES THE. DOES BERKELEY POLICE AND SERVICES SHARE THEIR TO-DO LISTS? HOW DOES NEIGHBORHOOD SERVICES KNOW THERE'S SOMEONE TO VISIT AT THE PARK. EXCUSE ME, I'M WANDERING. AND ONCE THEY VISIT THEM, HOW DOES THAT GET BACK TO BERKELEY POLICE? THERE SHOULD BE SHARED INFORMATION HERE. THEN DO I HAVE TO RE-INVENT THE WHEEL WITH A NEW CITIZEN'S ARREST. ONCE THERE'S ONE TENT THERE'LL BE MORE. I'D JUST LIKE TO KNOW THE DELIVERABLES.

>> Mayor A. Ishii: I'LL ASK THE WOMAN TO SPEAK WHO WANTED TO SPEAK AS WELL.

>> MY FLAME IS GINA REGER AND HERE TO SPEAK ABOUT THE FIRE ISSUE. IT WAS TAKEN OFF THE AGENDA AND COULDN'T SPEAK TO IT AS AN AGENDA ITEM SO HERE I AM. THANK YOU FOR TAKING AN ACTIVE ROLE IN RESPONDING TO YOUR CONSTITUENTS ABOUT THE CONCERNS ABOUT EMBER. I HAVE CONCERNS ABOUT HOW THE WORKSHOP IS BEING SET UP. I

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FEEL THIS HAS TO BE A DIALOGUE. IT HAD TO BE SOMETHING THAT ISN'T JUST THE BERKELEY FIRE DEPARTMENT MAKE ITS PRESENTATION AGAIN AND EXPLAINING TO THE CONSTITUENTS WHAT EMBER IS ABOUT. THERE ARE PEOPLE WHO DISAGREE WITH THE PROPOSED ZONE ZERO. THEY FEEL IT'S OVERREACHING. THERE ARE EXPERTS WHO FEEL KEEPING VEGETATION WITHIN THE FIVE-FOOT ZONE COULD BE BENEFICIAL BOTH IN OUR CLIMATE AND TO PREVENTING FIRES. IT'S NOT SET IN STONE AND I'VE URGED THE COUNCIL TO SLOW DOWN BUT ALSO TO ENGAGE IN A DIALOGUE AND FIND OUT WHAT YOUR CONSTITUENTS' CONCERNS ARE RATHER THAN DICTATING TO THEM WHAT THAT IS GOING TO HAPPEN WITHOUT HEARING FROM THEM. SO I WOULD LIKE TO ASK THE COUNCIL OR WHOM EVER IS GOING TO BE INVOLVED WITH THIS MEETING TO INVITE SOME OF THE EXPERTS AND YOU KNOW WHO THEY ARE BECAUSE WE HAVE BEEN SENDING OUT A LOT OF E-MAIL WITH ARTICLES FROM FIRE RESEARCHERS, FROM PEOPLE WHO ARE DOING UP TO DATE RESEARCH AS A RESULT OF THE PALISADES FIRE BACK TO THE CAMP AND PARADISE FIRES. THERE'S CONFLICTING -- EVERYBODY AGREES WITH HOME HARDENING AND WITH FIRE RESISTANCE BUT NUKING GARDENS ISN'T NECESSARILY THE ANSWER. I WANT TO SEE THE INFORMATION FROM BOTH SIDES PRESENTED AT A WORKSHOP. THANK YOU.

>> Mayor A. Ishii: THANK YOU. I SEE SOMEBODY ELSE. ARE YOU HERE TO SPEAK ON NON-AGENDA PUBLIC COMMENT? CAN I ASK IF ANYBODY ELSE IS, YOU COME UP BECAUSE THE TIME HAS TECHNICALLY ENDED BUT I'LL

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ALLOW TO YOU SPEAK. GO AHEAD.

>> GOOD EVENING. MY NAME IS ANN AND I LIVE IN BERKELEY AND GLAD WE'RE WORKING TOWARDS SUPPORTING WILDFIRE PREVENTION HOWEVER, I THINK WE NEED TO FOCUS ON WHAT ACTUALLY WORKS. THE RULE YOU'RE GOING TO ENFORCE WOULD MAKE HOMEOWNERS SPEND THOUSANDS TO REMOVE PLANT, TREES, AND FENCES NEAR THEIR HOMES BUT THAT'S NOT WHAT CAUSES MOST WILDFIRES IN CALIFORNIA. MANY OF THE BIGGEST AND MOST DAMAGING FIRES THAT START ARE WHEN TREES START POWER LINES AND ONE STARTED WHEN IT DESTROYED THE TOWN OF PARADISE AND ANOTHER STARTED WHEN A TREE HIT A POWER LINE. BOBCAT FIRE IN 2020 STARTED WHEN A FIRE -- TREE MADE CONTACT WITH A FIRE LINED AND ANOTHER STARTED WHEN STRONG WINDS PUSHED TWO POWER LINES TOGETHER. FIRE INVESTIGATORS CONFIRM THESE FIRES STARTED BECAUSE OF PROBLEMS WITH POWER LINES AND NEARBY TREES. THAT MEANS WE SHOULD KEEP TREES AND BRANCHES AWAY FROM POWER LINES, PUT POWER LINES UNDERGROUND IN HIGH RISK AREAS. FOCUS FIRE PREVENTION EFFORTS ON AREAS WHERE LINES AND TREES ARE TOO CLOSE TO EACH OTHER, REMOVING PLANT NEAR HOMES DOESN'T STOP FIRES THAT START FROM A SPARK ON A HILLSIDE POWER LINE. STOPPING TREES FROM TOUCHING WIRES CAN PREVENT THE FIRES FROM EVER STARTING. TAKING OUT ALL THE PLANT NEAR HOMES REDUCES SHADE AND AIR QUALITY CAN HARM PEOPLE'S MENTAL HEALTH AND COST HOMEOWNERS A LOT OF MONEY AND POTENTIALLY DEBT WITHOUT SOLVING THE REAL PROBLEM. CITY OF

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BERKELEY SHOULD DIVERT THE BUDGET AND RESOURCES TO ENFORCE INVESTIGATIONS AND FINES OF BERKELEY RESIDENTS INSTEAD THEY SHOULD REDIRECT THOSE RESOURCES.

>> Mayor A. Ishii: THANK YOU FOR YOUR PUBLIC COMMENT. I THINK WE HAVE SOME FOLKS ONLINE.

>> YES, WE'LL GO FIRST TO KELLY'S IPAD. YOU SHOULD BE ALLOWED TO UNMUTE. WE'LL COME BACK. DANIEL BROWNSON.

>> HELLO.

>> YES, GO AHEAD.

>> PEOPLE DON'T WANT TO LIVE IN TENTS ANYMORE THAN THE FASCIST WHO SPOKE EARLIER WANTS TO SEE TENTS. IF YOU WANT TO ACTUALLY DO SOMETHING THAT WILL FIX THE PROBLEM INSTEAD OF MOVING IT AROUND BERKELEY AND THE BAY AREA, THE PROBLEM IS THAT PEOPLE NEED A PLACE TO LIVE AND DON'T HAVE ONE EITHER BECAUSE THEY CAN'T AFFORD IT -- WELL, ACTUALLY THAT'S USUALLY THE REASON THEY DON'T HAVE ONE. IF YOU WANT PEOPLE TO LIVE IN HOUSES AND NOT TENTS, YOU NEED TO ACTUALLY PROVIDE THE HOUSING. YOU NEED TO HAVE PUBLIC HOUSING NOT RESORT TO FASCIST SWEEPS IS LIKE SUGGESTED BY THE GENTLEMAN EARLIER. IF IT WORKED, IT WOULD HAVE WORKED ALREADY. THAT'S NOT THE ANSWER. YOU'RE NOT FIXING THE PROBLEM BY KICKING PEOPLE OUT OF ONE PARK. IF YOU HAVE NOT PROVIDED A PLACE FOR THEM TO LIVE, YOU HAVE NOT FIXED THE PROBLEM. THE PROBLEM IS THEY DON'T HAVE A PLACE TO LIVE. THE PROBLEM IS NOT THAT THEY

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EXIST. WHEN YOU SAY YOU WANT TO VOMIT WHEN YOU GO PAST PEOPLE JUST TRYING TO EXIST BECAUSE THEY'RE POOR OR GOT EVICTED ARE PURE FASCIST TALKING POINTS AND FREE PALESTINE.

>> Mayor A. Ishii: THANK YOU.

>> NEXT IS KIERAN SHINNOY.

>> THANK YOU, MR. NUMAINVILLE. WE WANTED TO RAISE THE LACK OF INTERNAL INFORMATION AND AWARENESS REGARDING THE FIRE TRANSFER TAX REBATE AND IT'S BEEN IN THE MUNICIPAL CODE FOR FIVE MONTHS AND NOWHERE TO BE FOUND ON THE CITY'S WEB PAGE UNLIKE THE SEISMIC PROGRAM AND MANY HAD NOT IDEA THE REBATE PROGRAM EXISTED. THAT CAUSES MAJOR CONCERN WITH NEW FIRE CODE REQUIREMENTS ON THE HORIZON THAT WOULD REQUIRE SIGNIFICANT COSTLY HARDENING MEASURES. HOMEOWNERS NEED TO KNOW A FINANCIAL INCENTIVE IS AVAILABLE AND CITY STAFF NEEDS TO BE ABLE TO EXPLAIN IT. WE'RE ASKING THE CITY TO IMMEDIATELY ADD THE INFORMATION ONLINE AND MAKE SURE ALL DEPARTMENTS ARE TRAINED ON THE EXISTENCE AND ELIGIBILITY CRITERIA.

>> Mayor A. Ishii: THANK YOU.

>> Clerk: NEXT IS GEORGE PEREZ VALEZ.

>> THANK YOU SO MUCH. GEORGE PEREZ VELEZ FOR THE ALLIANCE FOR PRACTICAL FIRE SOLUTION. THANK YOU TO THE CITY COUNCIL AND MANAGER FOR CHANGING THE PERSPECTIVE AND ALLOW GREATER TRANSPARENCY IN TERMS OF GOOD GOVERNANCE. I WILL SAY THAT IT IS

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IMPORTANT TO NOTE THERE ARE CONCERNS NOT QUESTIONS IT'S IMPORTANT BE A COLLABORATIVE PROCESS AND THE NEXT TWO MEETINGS GO TO INFORMATION WE ALREADY HAVE BUT HOPEFULLY AN EXCHANGE OF POSITIONS SO EVERYONE CAN GET DIFFERENT PERSPECTIVES. THAT WILL SERVE THE CITY WELL AND OUR HOPES ARE WE CONTINUE TO CONTRIBUTE AS YOU MAKE GREAT PUBLIC POLICY. WE ARE SUPPORTERS OF FIRE PRACTICES. WE'RE JUST LOOKING TO HAVE A FULL ENGAGEMENT AND PRAGMATIC APPROACH TO THIS IMPACTFUL PROPOSAL. THANK YOU FOR YOUR TIME AND THANK YOU FOR POSTPONING THIS TO JUNE 17 AND THANK YOU FOR YOUR CONTINUED BELIEF ON GOOD GOVERNANCE AND HOW YOU MAKE DECISIONS. HAVE A GOOD EVENING.

>> Mayor A. Ishii: THANK YOU.

>> Clerk: TO THE LAST SPEAKER IS KEN.

>> CAN YOU HEAR ME? I WANT TO BRING TO THE COUNCIL'S ATTENTION SENATE BILL 607 BY SENATOR WIENER TO WIPE OUT CEQA AND I THINK YOU SHOULD OPPOSE SENATE BILL 607. THANK YOU.

>> Clerk: OKAY. THAT'S ALL THE NON-AGENDA PUBLIC COMMENTERS.

>> Mayor A. Ishii: NOW WE'LL MOVE ON TO PUBLIC COMMENT BY EMPLOYEE UNIONS IT'S THE FIRST REGULAR MEETING OF THE MONTH.

>> Clerk: ARE THERE ANY UNION REPRESENTATIVES PARTICIPATING REMOTELY FOR THIS PORTION?

>> Mayor A. Ishii: HE'S HERE IN PERSON, ACTUALLY. JUST SO YOU KNOW.

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>> Clerk: IF THERE'S ANY OTHER REPRESENTATIVES BECAUSE THAT IMPACTS HOW MUCH TIME. OKAY. I DON'T SEE ANY SO FIVE MINUTES.

>> GOOD EVENING, BERKELEY CITY COUNCIL AND BERKELEY CITIZENS. I'M THE PRESIDENT OF BERKELEY FIREFIGHTERS ASSOCIATION OF LOCAL 1227. I'M HERE TO SPEAK TO YOU GUYS TONIGHT ABOUT THE BUDGET DEFICIT THE CITY IS FACING. WE'RE ALSO AWARE ONE OF THE POTENTIAL SOLUTIONS IS A HIRING FREEZE. I WANT TO CAUTION CONSEQUENCE REGARDING THE HIRING FREEZE OF PUBLIC SAFETY POSITIONS. THE FIRE DEPARTMENT IS CURRENTLY LOOKING AT A PROJECTED 10 TO 15 POSITIONS DUE TO RETIREMENT IN THE NEXT YEAR. IN OUR LABOR AGREEMENT WE HAVE MINIMUM STAFFING REQUIREMENTS SECTION 38. THOSE ARE NOT ONLY FOR THE CITIZENS OF BERKELEY AND OUR SAFETY AS WELL AND THOSE VACANCIES WOULD HAVE TO BE FILLED BY MANDATORY OVERTIME AND WHEN WE'VE HAD TO USE THIS FOR MANDATORY VACATIONS MOST RECENTLY THE COVID ERA, WHAT YOU SEE AFTER SEVERAL MONTHS IS AN INCREASE IN SAFETY AND WORKERS COMP. GIVEN THE WORK WE DO IS PHYSICALLY AND MENTALLY TAXING AND THE SLEEP DEPRIVATION AND THE PHYSICALITY OF THE WORK ITSELF. WHEN WE DO NEED TO FIRE FIREFIGHTERS IT TAKES ABOUT 12 TO 13 MONTHS FROM THE TIME WE ADVERTISE AND ACCEPT APPLICATIONS AND DO INTERVIEWS AND DO A 20-WEEK FIRE ACADEMY AND WHEN THE BAN IS LIFTED THE MANDATORY OVERTIME WILL STILL BE IN EXISTED. WE'RE ALWAYS WILLING TO MANY CO TO THE TABLE TO FIND COLLABORATIVE

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SOLUTIONS TO WORK TOWARDS THE LONG-TERM FINANCIAL HEALTH OF THE CITY.

>> Mayor A. Ishii: ARE THERE OTHER UNION REPRESENTATIVES HERE OR ONLINE?

>> I DON'T SEE ANY.

>> Mayor A. Ishii: OKAY. ALL RIGHT, BE THEN WE'LL MOVE ON TO THE CONSENT CALENDAR. COUNCILMEMBERS, I DON'T SEE ANY HANDS. GO AHEAD. SOMETIMES THE CLICKERS DON'T WORK.

>> M. Humbert: THANK YOU, MADAME MAYOR. I THINK MY MIC IS WORKING. I JUST WANTED TO HIGHLIGHT ITEM NUMBER 7 ON THE CONSENT CALENDAR WHICH IS THE CONTRACT FOR PAINTING RED CURVES TO ENHANCE COMPLIANCE WITH CALIFORNIA'S DAYLIGHTING BILL AND EXCITED TO SEE THE WORK UNDERWAY AND CONSISTENT WITH OUR CALIFORNIA LAW AND OUR ORDINANCE. WE PASSED IT AHEAD OF THE CALIFORNIA LAW. WE'LL HAVE FUNDING TO PAINT A SIGNIFICANT NUMBER OF CURBS AND RED CURBING, CROSSWALKS AND INTERSECTIONS HAS INCREDIBLE SAFETY BENEFITS FOR PEDESTRIANS AND THE CITIES OF HOBOKEN IN NEW JERSEY THEY HAVEN'T SEEN A SERIOUS PEDESTRIAN OR CYCLIST DEATH IN YEARS MOSTLY BECAUSE OF RED CURBING AND SOME ADDITIONAL ASSOCIATED SAFETY IMPROVEMENTS AND THIS IS REALLY EXCITING. ONCE WE GET THIS UNDERWAY OUR CITY WILL BECOME SAFER AS WE DO THIS. THANK YOU.

>> Mayor A. Ishii: THANK YOU, COUNCILMEMBER. COUNCILMEMBER

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TREGUB.

>> I. Tregub: THANK YOU. I WANTED TO BRIEFLY SPEAK TO ITEM 8B ON CONSENT. I WANTED TO THANK THE COMMISSION ON THE STATUS OF WOMEN FOR BRINGING TO US THEIR RECOMMENDATION AND I WANT TO BE VERY CLEAR THAT THIS IS AN IMPORTANT LAW THAT I THINK I CAN SAY I SPEAK FOR EVERYONE HERE ON THE DAIS. I THINK WE ALL BELIEVE THAT ENSURING THAT A TRAINING TO PREVENT SEXUAL HARASSMENT IS TAKEN USING THE PERIOD OF THE CITY CIRCUMSCRIBED IN STATE LAW IS IMPORTANT. WE ARE IN A CHALLENGING FINANCIAL TIME AND THE DECISIONS I MAKE ON THE DAIS AND WE ALL MAKE ON THE DAIS ARE EVALUATED THROUGH THE LENS OF HAVING TO DO MORE WITH LESS. THERE ARE OPPORTUNITIES. I WANTED TO INVITE MEMBERS OF THE COMMISSION SHOULD THEY WANT TO PURSUE THIS. I DON'T KNOW THE EXTENT TO WHICH CONVERSATIONS HAVE HAPPENED WITH THE CHAMBER OR BUSINESS IMPROVEMENT DISTRICTS. 23 MY OFFICE CAN FACILITATE THOSE WITH THE COMMISSION AND BUSINESS OWNERS IN MY DIRECT I WOULD BE OPEN TO DOING SO AND THERE MAY BE OPPORTUNITIES TO ACHIEVE THE INTENDED OUTCOME IN A WAY THAT DOES NOT INSTITUTE A NEW PROGRAM THAT FORTUNATELY AT THIS TIME GIVEN THE CHALLENGING FISCAL SITUATION OUR CITY IS IN WE ARE NOT ABLE TO DO SO. SO I WANTED TO EXPLAIN THAT MY SUPPORT FOR 8B WHICH IS TO TAKE NO ACTION ON THIS ITEM SHOULD NOT AT ALL BE CONSTRUED AS A LACK OF SUPPORT FOR THE OVER ALL CONCEPT AND I AGAIN WANT TO THANK THE CHAIR OF

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THE COMMISSION ON THE STATUS OF WOMEN AND THE COMMISSION FOR ALL YOUR WORK ON THIS ITEM.

>> Mayor A. Ishii: THANK YOU, COUNCILMEMBER. COUNCILMEMBER BLACKABY.

>> B. Blackaby: I'M EXCITED TO SEE SUPPORT FOR THE RED CURB PROGRAM TO HELP PUBLIC WORKS COMPLETE THE DAYLIGHTING OF THE INTERSECTIONS THROUGHOUT OUR CITY. WE KNOW IMPLEMENTATION OF THE STATE LAW WILL IMPROVE CONDITIONS AND REDUCE DEATHS IN THE CITY. I APPRECIATE SEEING THAT. IT'S GREAT THE DIABLO WILL SUPPORT HOME HARDENING WORK IN BERKELEY AS WE CONTINUE TO FIND MORE SUPPORT FOR THE PROPOSAL ON DEFENSIVE SPACE AND HOME HARDENING THIS FALL.

>> Mayor A. Ishii: THANK YOU. ANY OTHER COMMENTS FROM COUNCILMEMBERS? OKAY I'LL CLOSE COUNCIL COMMENTS AND OPEN COMMENTS ON CONSENT ITEMS AND INFORMATION ITEMS ONLY.

>> AS I HAVE STATED BOTH IN THIS REPORT AT THE TIME I AUTHORED IT THOUGH SATE O.C.R. SAID THEY ENFORCE THE ISSUES WHEN [INDISCERNIBLE] AND THE LETTER IN THE SUPPLEMENTAL PACKET, COMPLAINT TRIGGERED DOES NOT WORK. IT'S BEEN TO BE INEFFECTIVE AND THE LARGER EMPLOYERS ARE LIKELY COMPLYING. I DON'T BELIEVE OUR SMALL EMPLOYERS IN BERKELEY ARE COMPLYING OR KNOW OF THE LAW OR SB1843 EXIST AND THEY HAVE THE RIGHTS SO THE EMPLOYERS KNOW THEY HAVE THE RESPONSIBILITIES. I UNDERSTAND THE BUDGETS CRISIS

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CURRENTLY AND I INCLUDE THAT IN IN THE E-MAIL I SENT IN SUPPLEMENTAL PACKET 2 WHICH IS WHAT YOU STATED, REACHING OUT TO THE BERKELEY CHAMBER OF COMMERCE. REACHING OUT TO THE BIDS TO DO EDUCATION. WHAT WE CAN DO TO SCALE THIS DOWN IN SUCH A FASHION THAT THERE'S THE EDUCATION STILL GOING ON AND SMALL BUSINESSES IN BERKELEY AND NONPROFITS DON'T KNOW IT EXIST. IT SEEMS IT WOULD BE EASY FOR US TO ENGAGE WITH OUR CONTRACTORS AND HAVE THEM SEND AN ADDENDUM AND I'D BE HAPPY TO WORK WITH YOU AS A PRIVATE CITIZEN.

>> Mayor A. Ishii: THANK YOU FOR YOUR COMMENT. ARE THERE OTHER COMMENTS ON THE CONSENT CALENDAR? INFORMATION ITEMS?

>> Clerk: ONE HAND IS RAISED KIRRAN SHENOY.

>> I WANTED YOU TO KNOW WE HOPE THE CONTRACT CAN SUPPORT PUBLIC ACCESS TO AGGREGATE ASTRO DEPOSIT DATA BECAUSE TRANSPARENCY IS CRITICAL AND UPGRADES THAT WILL EXCEED THE $5,000 DEPOSITS IT'S LIKELY THEY'LL BE FORFEITED AND THE ESCROW WILL BE MORE OF AN EXCLUSIVITY TAX ON HOME OWNERSHIP. WITH 600 TRANSACTIONS IT CAN GENERATE $3 MILLION A YEAR IN FORFEITED FUNDS. PUBLIC ACCESS TO THIS DATA WOULD ENSURE RESIDENTS CAN SEE WHERE THE FUNDS GO AND WHETHER THEY'RE USED FOR RESILIENCE UPGRADES OR AS PROMISED. IF WE'RE GOING TO IMPOSE THIS BURDEN ON HOME BUYERS IN A CHALLENGING MARKET FOR SO MANY HOMEOWNER CHALLENGES WE CAN AT LEAST PROVIDE ACCURATE INFORMATION.

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>> Mayor A. Ishii: THANK YOU. NO OTHER COMMENT?

>> Clerk: NO OTHER RAISED HANDS.

>> Mayor A. Ishii: THANK YOU. IS THERE A MOTION?

>>

>> I. Tregub: MOTION ON 8B TO TAKE NO ACTION ON THE RECOMMENDATION BY THE COMMISSION ON THE STATUS OF WOMEN.

>> Mayor A. Ishii: THANK YOU. I HEARD A SECOND FROM COUNCILMEMBER TAPLIN AND I THINK WE'RE ALL HERE. UNLESS THERE'S ANY OPPOSITION I'LL HAVE US ALL RECORDED AS AYES. VERY GOOD. THE CONSENT CALENDAR HAS PASSED. THANK YOU SO MUCH. MOVING ON TO THE ACTION CALENDAR. A REMINDER FOR FOLKS, WE ONLY HAVE ONE ITEM ON THE ACTION CALENDAR NOW WHICH IS THE PUBLIC HEARING ON THE ZAB APPEAL 1048 KEITH AVENUE USE PERMIT 2024-1014 WRAPPED OF AND START WITH -- AND START WITH STAFF PRESENTATION.

>> SORRY, MAYOR, I HAVE TO STAY SOMETHING. I HAVE TO RECUSE MYSELF FROM THIS BECAUSE IT'S A ZAB APPEAL. I THOUGHT I DIDN'T HAVE TO BECAUSE I WASN'T AT THE JANUARY 26 MEETING BUT WAS AT THE OCTOBER 10 MEETING AND VOTED TO CONTINUE SO TECHNICALLY I WAITED ON THIS SO I REGRET I HAVE TO GO. HAVE FUN, EVERYONE.

>> Mayor A. Ishii: THANK YOU, COUNCILMEMBER. WE'LL HAVE STAFF PRESENTATION. I'LL OPEN THE PUBLIC HEARINGS. WE'LL OPEN THE PUBLIC HEARINGS AND WE'LL HAVE THE APPELLANT AND THE APPLICANT SPEAK EACH FOR FIVE MINUTES AND THEN TAKE PUBLIC COMMENT AND

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THEN CLOSE THE PUBLIC HEARING AND THEN DELIBERATE. SOUND GOOD? OKAY. I LIKE A ROAD MAP FOR FOLKS SO THEY KNOW WHAT THEY'RE IN FOR. TAKE IT AWAY.

>> JORDAN KLINE AND PRESENTING IS ROBERT RIVERA AND THE LAND USE PLANNING MANAGER. ROBERT'S JUST PULLING UP THE PRESENTATION NOW.

>> ALL RIGHT I'M A SENIOR PLANNING AND WHAT YOU HAVE BEFORE YOU IS A PLANNING DECISION FOR 1048 KEITH AVENUE TO APPROVE A USE PERMIT TO DEMOLISH A 2,760 SQUARE FOOT SINGLE FAMILY DWELLING AND CONSTRUCT A TWO-STORY, 3, 600 SQUARE FOOT SINGLE FAMILY DWELLING AND I'LL HAVE DETAILS BEFORE ADDRESSING THE APPEAL ISSUES.

>> ALL RIGHT. THE USE PERMIT APPLICATION FOR 1048 KEITH WAS DEEMED COMPLETE IN FEBRUARY 2024. THE PROJECT WAS PROPERLY NOTICED AND SCHEDULED FOR A PUBLIC HEARING BEFORE THE ZONING ADJUSTMENT BOARD ON SEPTEMBER 26, 2024. THAT THE MEETING THE MEMBERS OF THE PUBLIC RAISED CONCERNS ABOUT THE ACCURACY OF THE SUBMITTED SURVEY AND IN RESPONSE ZAB REQUESTED A REVISED SURVEY AND CONTINUED THE ITEM TO OCTOBER SO, 2024. THE HEARING WAS SUBSEQUENTLY CONTINUED TO ALLOW ADDITIONAL TIME TO REVIEW THE UPDATED MATERIALS. ONCE THE REVISED SURVEY WAS RECEIVE STAFF NOTICED THE HEARING FOR A ZAB JANUARY 2025. AT THAT MEETING, THE ZAB APPROVED THE PROPOSED PUBLIC HEALTH AND ON JANUARY 25, 2025, THE DECISION WAS APPEALED TO CITY COUNCIL WHICH BRINGS IT TO

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TODAY'S HEARING. THE PROJECT IS LOCATED AT 1048 KEITH AVENUE AND WITHIN THE OVERLAY. THE SITE IS SITUATED ON THE SOUTH SIDE OF KEITH AVENUE AND FEATURES A 20-FOOT DOWNWARD SLOPE FROM THE STREET TO A LEVEL SECTION AND THE SITE IS CURRENTLY DEVELOPED WITH A SINGLE FAMILY 2,700 SQUARE FOOT SINGLE FAMILY RESIDENCE. THE PROPOSED PROJECT HAS A REAR SETBACK PERMISSIBLE WITHIN THE OVERLAY ZONE. THE EXISTING RESIDENCE IS 17 FEET FROM THE REAR LOT LINE. SHOWN IS THE EXISTING RESIDENCE AND HAS HEIGHT OF 13 1/2 FEET AND MAXIMUM OF 17 FEET. THIS SHOWS THE AVERAGE HEIGHT INCREASE TO 21 FEET AND MAXIMUM OF SLIGHTLY UNDER 25 FEET. SHOWN HERE IS THE WEST ELEVATION AND INCLUDES OFF STREET PARKING WITHIN THE FRONT SETBACK THAT'S SHOWN IN ORANGE AS WELL AS THE CONSTRUCTION OF A TRELLIS AND INSTALLATION OF A FENCE AND RETAINING WALL IN RED. THE FENCE IS ALONG THE LOT LINE AND APPROXIMATELY SIX FEET IN HEIGHT THOUGH THIS VARIES SLIGHTLY DEPENDING ON THE DOWNWARD SLOPE. I'D LIKE TO SUMMARIZE STAFF RESPONSE. MORE DETAILS CAN BE IN THE ZAB RESPONSE AND THE FIRST COMPLAINT IS IT ENCROACHES ON THE PROPERTY AND THE TOPOGRAPHICAL REPRESENTATION IS INACCURATE AND THE APPLICANT PROVIDED A REVISED SURVEY AND STAMPED BY A LICENSED SURVEYOR OCTOBER 15 OF 2024. THE UPDATED SURVEY CONFIRMED THE PROPERTY BOUNDARIES TO WITHIN AN INCH OF THE LOT LINE. IT WAS REVIEWED AND VERIFIED BY ACCURACY FROM PUBLIC WORKS AND BUILDING AND SAFETY DIVISION.

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BASED ON THIS INFORMATION, STAFF FINDS THE PROPOSED PROJECT DOES NOT ALTER OR MODIFY AN EXISTING LOT LINE AND FOUND TO EVIDENCE TO SUPPORT IS THE APPELLANT'S CLAIMS OF ENCROACHMENT OR INACCURACIES IN THE SURVEY. THE SECOND APPEAL ISSUE ARE IMPACT ON NEIGHBORS PROPERTIES. APPELLANTS CLAIM IT CREATES A LOT LINE ADJUSTMENT SHIFTING LINES ACROSS MULTIPLE PROPERTIES CREATING LEGAL AND LOGISTICAL COMPLICATIONS. THE PROPOSED PROJECT DOES NOT INCLUDE LOT LINE ADJUSTMENTS. PROPERTY BOUNDARIES WERE CONFIRMED TO REMAIN UNCHANGED AND THEY FOUND IT WAS ACCURATE WITHIN THE PUBLIC WORKS DEPARTMENT AND DIVISION STAFF AND STAFF IS AWARE THERE HAVE BEEN HISTORIC SLIDE ISSUES IS THAT VARY BY STREET AND BLOCK. THERE'S NO POLICY THAT ADDRESSES THE ISSUE OF SLIDING LAND. THIS KNOWN PHYSICAL CONDITION AND THE LACK OF CORRECTIVE POLICY WERE DISCUSSED AT THE ZAB HEARING IN JANUARY AND IDENTIFIED AS BROADER ISSUES THAT MUST BE ADDRESSED FROM AN INDIVIDUAL PROJECT. THE ZAB RECOGNIZED THE SURVEY SUBMITTED BY THE APPLICANT PEER REVIEWED BY CITY DEPARTMENTS WAS SATISFACTORY AND AS A RESULT THE ZAB VOTED TO APPROVE THE PROJECT. AND THERE'S A COMPREHENSIVE SURVEY OF THE PROPERTIES NEEDED TO ENSURE FAIR AND EQUITABLE LOT LINE ADJUSTMENTS. WHILE STAFF UNDERSTANDS THE DESIRE FOR A MORE HOLISTIC REVIEW IT'S IMPORTANT TO CLARIFY DEVELOPMENT APPLICATIONS ARE EVALUATED BASED ON SPECIFIC CONDITIONS OF THE PROJECT SITE. THIS IS STANDARD

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PRACTICE AND ENSURES EACH PROPOSAL IS ASSESSED ON ITS OWN MERITS FOR FEASIBILITY AND CODE COMPLIANCE. THE CODE DOES NOT INCLUDE SURVEYING OR ADJUSTING PROPERTIES AS EACH PARCEL IS SUBJECT TO ITS OWN CONDITIONS AND ZONING AND DEVELOPMENT STANDARDS. THAT SAID, THIS PROJECT WAS REVIEWED FOR COMPATIBILITY WITH ADJACENT PROPERTIES AND IMPACT ON THE SURROUNDING COMMUNITY. BASED ON THAT REVIEW, STAR FINDS THE REVIEW TO BE CONSISTENT WITH APPLICABLE REGULATIONS. THE FOURTH APPEAL ISSUE IS ON THE ISSUE THE BOARD APPROVED THE PROJECT WITHOUT ADEQUATELY CONSIDERING NEIGHBOR CONCERNS. THE APPELLANT ARGUES IS AT THE LEAVES PROPERTY OWNERS TO RESOLVE DISPUTES INDIVIDUALLY LEADING TO INCONSISTENT OUTCOMES. STAFF RECOGNIZE THE IMPORTANCE OF PUBLIC INPUT AND THE ZAB HELD TWO MEETINGS WHERE CONSIDERATIONS WERE RECEIVED AND CONSIDERED AND ISSUED NOTICES TO INTERESTING NEIGHBORHOOD ORGANIZATIONS. THE CITY ALSO POSTED NOTICES AT THREE NEARBY LOCATIONS WITHIN THE NEIGHBORHOOD AND AFTER CONSIDERATION THE BOARD FOUND THE PROJECT IS CONSISTENT WITH THE HEALTH SAFETY PEACE, COMFORT AND WELFARE OF THE NEIGHBORHOOD. THE PROJECT WAS EVALUATED FOR COMPATIBILITY WITH ADJACENT PROPERTIES AND BROADER COMMUNITY IMPACT. ULTIMATELY THE ZAB DETERMINED IT REFLECTS A REASONABLE SCALE OF DEVELOPMENT WHILE MAINTAINING THE CHARACTER OF THE AREA. IT'S ALSO IMPORTANT TO NOTE IT LOT LINE ADJUSTMENTS FALL OUTSIDE THE ZAB'S

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RESPONSIBILITIES AND IT'S BASED ON CONDITIONS NOT IMPOSE CHANGES ON PRIVATE PROPERTY BOUNDARIES. THE FIFTH ISSUE ARE CONCERNS THE PROPOSED PROJECT WOULD RELOCATE THE STRUCTURE OVER EXISTING SEWER AND STORM DRAINAGE SYSTEMS AT 1050 KEITH AVENUE AND NO RELOCATION PLAN HAS BEEN PROVIDED IN THE DOCUMENTS. STAFF REVIEWED THE UPDATED BOUNDARY SURVEY AND THE PARCEL MAP FOR RECORDED SEWER OR STORM DRAIN EASEMENTS ON THE SUBJECT PROPERTY. NO SUCH EASEMENTS WERE IDENTIFIED AND STAFF FOUND NO EVIDENCE OF INFRASTRUCTURE CONFLICTS RELATED TO SEWER OR STORM DRAINAGE SYSTEMS AND FURTHER THE PROJECT IS SUBJECT TO CONDITIONS OF APPROVAL REQUIRING IF ANY UNDERGROUND UTILITIES SERVING ADJACENT PROPERTY UNCOVERED OR DAMAGED DURING CONSTRUCTION THE CONTRACTOR MUST IMMEDIATELY NOTIFY THE PUBLIC WORKS ACCIDENT AND SAFETY DIVISION AND TAKE NECESSARY CORRECTIVE ACTIONS. THIS CONDITION HELPS ENSURE ANY UNFORESEEN ISSUES ARE ADDRESSED PROMPTLY AND RESPONSIBLY DURING CONSTRUCTION. AND THE FINAL APPEAL ISSUE ALLEGE THE APPLICANT DEMOLISH THE CHAIRED FENCE IN 2024 AND THE STRUCTURE INCLUDING AN ANIMAL SANCTUARY AND PET BURIAL SITES AND TREES WERE REMOVED FROM THE DISPUTED PROPERTY. THEY ALSO RAISE ONGOING CONCERNS ABOUT PROPERTY BOUNDARIES AND ADDRESS THE CITY ADDRESS PROPERTY LINES ON DEEDED SQUARE FOOTAGE AND PROPERTY LINE DISPUTE PRIVATE CIVIL MATTERS BETWEEN PROPERTY OWNERS AND FALL OUTSIDE THE CITY OF BERKELEY JURISDICTION. THE CITY DOES

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NOT HAVE THE AUTHORITY TO RESOLVE CLAIMS DUE TO OWNERSHIP OR ORDER LINE AND THERE'S NO EVIDENCE PRESENTED TO DEMONSTRATE THE PROJECT WOULD ALTER LEGAL BOUNDARIES OR ENCROACH ON NEIGHBORS PROPERTIES. STAFF RECOMMENDS THAT CITY COUNCIL CONDUCT A PUBLIC HEARING AND ADOPT A RESOLUTION AFFIRMING THE ZAB'S CONDITION TO APPROVE THE PERMIT AND FINDINGS AND CONDITIONS AND COUNCIL MAY REVERSE OR MODIFY ZAB'S DECISION OR REMAND THE MATTER BACK TO ZAB. THIS CONCLUDES STAFF'S PRESENTATION AND I'M AVAILABLE FOR ANY QUESTIONS.

>> Mayor A. Ishii: THANK YOU VERY MUCH. I'D LIKE TO OPEN THE PUBLIC HEARING NOW. WE HAVE PRESENTATIONS FOR FIVE MINUTES EACH.

>> FIRST IS THE APPELLANT.

>> GOOD EVENING. THANK YOU MAYOR AND THANK YOU COUNCILMEMBERS. MY NAME IS AUTUMN JOHNSON AND I'M HERE REPRESENTING THE GANGI FAMILY OPPOSING THIS USE PERMIT. IN THE SLIDE ZONES UP IN THE HILLS OF BEAUTIFUL BERKELEY, GRAVITY TAKES A TOLL. OVER THE MANY DECADES SINCE THE ORIGINAL CITY SURVEY MAPS WERE DRAWN, THE LAND HAS SLOWLY MOVED DOWN HILL. SOMETIMES IT'S AN INCH A YEAR. TAKING WITH IT FENCES, GARDENS, HOMES, AND EVEN ROADS. IF WE WERE TO DRAW THE ORIGINAL PROPERTY LINES ON TODAY WE'D FIND MANY FENCES AND MANY HOUSES NOW SIT WELL BELOW THEM HAVING SLID DOWN ON TO NEIGHBORING LOTS. YOU MAY THINK THIS WOULD CAUSE ENDLESS CONFLICT BUT IT DOESN'T. WHY? NEIGHBORS HAVE DEVELOPED A

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PRACTICAL AND PEACEFUL SOLUTION. THEY AGREE TO ADJUST LOT LINES TO MATCH WHERE THINGS HAVE ENDED UP MAKING SURE EACH PERSON STILL HAS THE SAME AMOUNT OF LAND AS ORIGINALLY DEEDED. IT'S NOT PERFECT BUT IT WORKS AND KEEPS THE PEACE. I'M HERE TONIGHT BECAUSE ONE NEIGHBOR AT 1048 KEITH AVENUE HAS BROKEN WITH THE NORM. 14 MONTHS AGO THEY TORE DOWN A FENCE WITHOUT NOTICE, WITHOUT AGREEMENT SINCE 1948 AND BEGAN CLAIMING THE LAND AT THEIR UPHILL NEIGHBOR AT 1050 KEITH WITH THE CITY'S BLESSING. THE BERKELEY HILLS ARE GEE LOGICALLY UNSTABLE. THE CITY'S OWN EXPERTS ACKNOWLEDGE PARCELS MAY HAVE SHIFTED UP TO 20 FEET SINCE THE ORIGINAL SURVEYS. THIS IS NOT SPECULATION. THIS IS DOCUMENTED. BY APPROVING THIS USE PERMIT, THE CITY IS ENDORSING A DANGEROUS PRECEDENT LETTING ONE HOUSEHOLD IGNORE DECADES OF BOUNDARIES AND TAKE 1,650 SQUARE FEET FROM A NEIGHBOR. IF THAT'S ALLOWED EVERY SURROUNDING NEIGHBOR WILL BE FORCED TO DO THE SAME THING TO DRAW DEEDS TO KEEP FROM LOSING LAND. ONE NEARBY PROPERTY MAY BE PUSHED ALL THE WAY TO THE PUBLIC STREET. WE UNDERSTAND PROPERTY DISPUTE USUALLY PRIVATE MATTERS BUT WHEN THE CITY STEPS IN AND LEGITIMIZES A LAND GRAB IT BECOMES YOUR RESPONSIBILITY THAT'S WHY THE EIGHT AFFECTED HOMEOWNERS ASK YOU TO DEFY THE PERMIT IN ITS CURRENT FORM AND ASK YOU TO REQUIRE BOTH NAMERS, 1018 AND 1050 KEITH UPDATE BOUNDARIES BASED ON TODAY'S TOPOGRAPHY PRESERVING EACH PARCEL'S SQUARE FOOTAGE.

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PLEASE HELP US PROTECT OURS. THANK YOU.

>> Mayor A. Ishii: THANK YOU. IS ANYONE HERE FROM THE APPLICANT TO SPEAK? OKAY. SIR, JUST COME UP TO THE PODIUM. YOU HAVE SLIDES? OH, I SEE. IF THEY WANT TO JOIN THE ZOOM TO SHARE SLIDES --

>> LINDSEY NEWMAN JUST DID.

>> Mayor A. Ishii: THANK YOU. TECHNOLOGY IS NOT ALWAYS OUR FRIEND.

>> ONE MORE TIME.

>> Mayor A. Ishii: IS IT POSSIBLE TO CONNECT HERE PHYSICALLY OR NO?

>> PEOPLE PARTICIPATING REMOTELY WILL BE ABLE TO SEE.

>> Mayor A. Ishii: LIKE PHYSICALLY CONNECT. DO WE HAVE THE ABILITY TO PLUG IN SOMEWHERE OR NO?

>> Mayor A. Ishii: YOU CAN DESCRIBE THEM FOR US, PERHAPS.

>> IT MAY TAKE LONGER BECAUSE I'LL HAVE TO TALK FAST. THANK YOU FOR HAVING US HERE AND THANK YOU TO THE CITY OF BERKELEY'S PLANNING DEPARTMENT FOR OFFERING VALUABLE ADVICE AND AMAZING PRESENTATION AS WELL AS THE ZAB BOARD WHO APPROVED OUR USE PERMIT IN JANUARY AND WOULD LIKE TO THANK THE COMMUNITY TO CAME TO TALK ABOUT OUR PROJECT. I'M LINDSAY NEWMAN THE OWNER AND HAVE MY LICENSE IN CIVIL ENGINEERING IN THE STATE OF CALIFORNIA WHERE I WORKED IN THIS FIELD SINCE 2005. FIRST I'M GOING TO GIVE YOU

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BACKGROUND ON THE INITIAL PROCESS AND HOW I GOT TO WHERE THE DESIGN IS CURRENTLY. AT THE END I'LL ADDRESS THE APPEAL. I'M ORIGINALLY FROM ANN ARBOR, MICHIGAN BUILT BY WALTER SANDERS AT THE UNIVERSITY OF MICHIGAN IN 1953 AS A STUDENT PROJECT. MR. SANDERS AND HIS WIFE'S ASHES WERE SPREAD IN THE YARD. I TOOK MY FIRST STEPS THERE BEFORE I TURNED 1 AND MY HUSBAND AND I GOT MARRIED THERE. IT'S A SPECIAL PLACE FOR ME AND INSPIRES ME TO DESIGN HOUSE ARE ENVIRONMENTALLY FRIENDLY AND BLENDING IN WITH THE SURROUNDING LANDSCAPE AND COMMUNITY. AND THIS IS A PICTURE OF THE SITE PLAN. HERE'S THE VERSA PROVED IN JANUARY. I DESIGN IS IT AND DOWN HILL NEIGHBORS OF KEITH AVENUE. ALSO HELPED PLAN THE ANGLES AND ANOTHER CONSIDERATION I TOOK WITH THE BUILDING THE HOUSE WAS THE LOCATION AVE MAIN HOUSE ON THE LOT BEFORE SUBMITTING THE PLANS I CONTACTED THE UPHILL NEIGHBOR AT 1050 THE APPELLANT AND THE STRONG PREFERENCE WAS TO HAVE IT IN THE SUNKEN PART OF THE LOSS AND I WORKED ON THE SETBACKS BETWEEN OURS AND THEIRS INSTEAD OF THE SETBACK. I HAVE A PICTURE OF OUR CONSTRUCTION AND SINCE THE ORIGINAL HOUSE IS IN THE PROPOSED TWO-STORY HOUSE DOES NOT HAVE CRAWL SPACE THE NEW MAXIMUM HEIGHT IS NOT THE SAME AND IT'S LESS THAN THE THREE STORY 35 FOOT HEIGHT LIMIT AND TRIED TO MATCH THE ADJACENT HOUSES SURROUNDING US. I TOOK CARE TO PRESERVE OUR NEIGHBORING EXISTING VIEWS AND I ADDED RETAINING WALLS PROPERLY DRAINED TO MITIGATE THE LAND

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MOVEMENT BY THE SOIL IN THE AREA. THIS IS A 3-D SKETCH MY DAUGHTER DREW AND THIS IS BASED ON THE PREVIOUS SLIDE. ONE OF MY FAMILY'S FAVORITE FEATURES IS THE TWO FLAT ROOFS ARE DESIGN TO HAVE FIRE SAFE VEGETATION GROWING ON THEM AND WE'RE EXCITED TO IMPLEMENT IT HERE. THEM I HAVE PICTURES FROM AROUND THE NEIGHBORHOOD AND HOUSE. THIS IS PICTURES FROM OUR OWN RENOVATION NEXT DOOR AND DESIGN IDEAS FROM HOUSES AROUND OUR NEIGHBORHOOD. WE WANTED TO USE THE DESIGN AND MATERIALS TO MATCH SURROUNDING NEIGHBORS AND THE MATERIALS ARE STUCKEY, HARDY BOARD PANELLING AND OTHER FIREPROOFING MATERIALS. OUR INTENT IS TO BUILD SOMETHING SUSTAINABLE, FIRE SAFE AND BEAUTIFUL OUR NEIGHBORHOOD CAN BE PROUD OF FOR YEARS TO COME. NOW ON TO THE APPEAL AT 1050 KEITH AVENUE. THIS IS NOT ABOUT ENGINEERING OR ABOUT THE ZONING CODE. THE APPEAL IS A REQUEST FOR LOT LINE ADJUSTMENT BASED ON THE FALSE ASSERTION OUR PROJECT ENCROACHES ON THE APPELLANT SURVEY AND THE SURVEYOR SAYS IT'S FULLY COMPLIANT WITH THE SETBACKS AND THE SURVEY IS CONSISTENT WITH THE 1050 KEITH IN 1949 WHICH SHOWS THEIR HOUSE THREE FEET FROM THE PROPERTY LINE AND CONSISTENT WITH MR. GANGI'S EXPANSION AND CONFIRMED BY TWO SURVEYORS THE APPELLANT HIRED SINCE FILING THE APPEAL. THE APPELLANT SUBMITTED A GEOTECHNICAL REPORT AND CONCLUDE THE SITE IS NOT PART OF THE ACTIVE KEITH SLIDE. THIS CONTRADICTS HIS SLIDE THE STREET MONUMENT BY OUR SURVEYOR IS INACCURATE.

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>> Mayor A. Ishii: THANK YOU. I'M SORRY. YOUR TIME IS UP.

>> IF YOU HAVE ANY OTHER QUESTIONS I'M HAPPY TO ANSWER.

>> Mayor A. Ishii: THANK YOU, APPRECIATE IT. WE'LL TAKE OTHER COMMENTS. ARE THERE FOLKS TO SPEAK ON PUBLIC COMMENT?

>> Clerk: LINE UP ON THIS SIDE. IF ANYONE WOULD LIKE TO SPEAK TO THE 1048 KEITH AVENUE ON THE ZOOM PLEASE RAISE YOUR HAND IF YOU'D LIKE TO SPEAK ON THIS ISSUE.

>> Mayor A. Ishii: MARK, IS THERE ANYONE ONLINE?

>> Clerk: THERE'S CURRENTLY TWO HANDS RAISED ONLINE. YOU HAVE EACH ONE MINUTE TO SPEAK SO BE AWARE AND ASK YOU TO STOP IF YOU HAVE NOT STOPPED AT THAT POINT.

>> Clerk: SOMEBODY CAN YIELD.

>> YOU CAN BE IN WHATEVER ORDER YOU'RE IN LINE. TIME CAN BE YIELD TO A SPEAKER CAN YIELD THEIR TIME TO ANOTHER SPEAKER. NO SPEAKER CAN HAVE MORE THAN FOUR TOTAL.

>> Mayor A. Ishii: BE AWARE THE MIC IS FINICKY. YOU WANT IT CLOSE BUT NOT TOUCHING.

>> THANK YOU FOR BEING HERE. THERE'S NO FINANCIAL IMPLICATION TO THIS APPROVAL OF THIS WAIVER. THAT'S INCORRECT. THIS STRUCTURE WILL TOWER 25 FEET OVER MY SMALL BUT FORMERLY PRIVATE BACK YARD AND THAT WILL HAVE A DIRECT IMPACT ON THE RESALE OF MY HOME. WHEN THE PROPERTY WAS LAST SOLD IN 2019 IT WAS LISTED AT ABOUT 1400 SQUARE FEET. THE SECOND QUESTION I HAVE ABOUT THE WHOLE

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PROCESS IS THE REPLACEMENT SIZE AND THE INCREMENTAL GROWTH AND SIZE OF THE PROPERTY. SO WHILE IT'S CLAIMED TO BE 2760 SQUARE FEET IT'S CLOSER TO 1400. THE NEW STRUCTURE WILL BE THREE TIMES THE SIZE AND 25 FEET RATHER THAN 17. I DO NOT BELIEVE THAT IS COMPATIBLE REPLACEMENT NOR IS IT REASONABLE DEVELOPMENT.

>> Mayor A. Ishii: THANK YOU FOR YOUR COMMENT.

>> GOOD AFTERNOON. I SUPPORT THE APPEAL. THIS PROPERTY IS NOT BEING ALLOWED TO VIOLATE THE SETBACK FROM OUR PROPERTY. WE'RE RIGHT BEHIND IT. THEY'RE GETTING A 15-FOOT SETBACK VERSUS THE 20 FOOT. FIVE FEET OF WHAT THEY'RE USING IS OUR PROPERTY. WHEN THE SURVEY WAS DONE, THEY GRABBED 20 FEET OF THE UPHILL NEIGHBOR AND BERKELEY TOLD ME FIVE FEET OF OUR PROPERTY WAS ON THE OTHER SIDE OF THE FENCE AND THAT WAS BEING USED FOR THE SETBACK. WE TALKED TO THE PROPERTY OWNERS DOING THE DEVELOPMENT TO MAKE SURE THAT WAS CORRECT AND THEY SAID IT'S NOT. THEY'RE TAKING THE 20 FEET OF THE UPHILL NEIGHBOR AND THE FIVE FEET OF OUR PROPERTY OVER THE LINE. WHY ARE THEY ALLOWED THIS VARIANCE? NOT FOR AN ADDITIONAL HOUSING UNIT, NOT FOR LOW-INCOME HOUSING, NOT FOR AN ADU OR ACCOMMODATION OF A DISABLED PERSON. SIMPLY BECAUSE THEY WANT A LARGER PROPERTY WHICH IMPACTS OUR PROPERTY.

>> Mayor A. Ishii: THANK YOU.

>> THEY ARE WELL WITHIN THEIR RIGHT TO IMPROVE THEIR PROPERTY AND WANT TO SUPPORT THE FOUNDATIONAL PRINCIPLE ALL PEOPLE WHO

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OWN PROPERTY SHOULD BE ABLE TO WORK WITHIN THE LAW TO IMPROVE THEIR PROPERTIES. BEYOND THAT, I THINK THE PROPERTY WILL ENHANCE THE NEIGHBORHOOD AND HE'S A STRUCTURAL ENGINEER AND UNDERSTANDS DEEPLY HOW TO WORK IN THIS AREA OF EXPANSIVE SOILS TO CREATE SOMETHING THAT WILL BE A GREAT PROPERTY AND THE PROPERTY IS IN POOR CONDITION. IT'S TIME TO BE REPLACED IN THE NEIGHBORHOOD.

>> Mayor A. Ishii: THANK YOU. YOU MIGHT WANT TO PULL THE MIC UP.

>> I'M HERE TO SUPPORT 1048 KEITH. AS AN EAST BAY RESIDENT AND HAVE KNOWN THE HOMEOWNERS FOR DECADES I CAN ATTEST TO THEIR COMMITMENT TO DEVELOPMENT AND IN LINE WITH THE MISSION. IT REPRESENT THE COMMITMENT TO CREATING A SUSTAINABLE HOME THAT EMBODIES THE ENVIRONMENTAL VALUES AND HAVE DEMONSTRATED APPROACHES TO BUILD ON STRUCTURALLY TERRAIN AND SOUND PRACTICES DESIGN FOR HILLSIDE CONSTRUCTION, THE USE OF ENVIRONMENTALLY CONSCIOUS BUILDING MATERIALS AND MINIMIZE IMPACT WHILE ENSURING LONGEVITY AND UNWAVERING COMMITMENT TO THE ENHANCING OF PROPERTY VALUES. THE TRACK RECORD SPEAKS TO THE RELIABILITY OF NEIGHBORS. IT REPRESENTS AN OPPORTUNITY TO CREATE A HOME TO THE HOUSING STOCK.

>> Mayor A. Ishii: THANK YOU ALL FOR YOUR TIMELY COMMENTS.

>> I'M IN SUPPORT OF THE 1040 KEITH AVENUE IN THE STATE OF DISREPAIR. THERE'S PROPERTY OWNERS TO LEGALLY BUILD ON THEIR PROPERTY WITHIN THE CONFINES OF THE CITY OF BERKELEY

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REGULATIONS. LINDSEY SHARED HER DESIGN WITH ME. IT'S FABULOUS. SHE'S A TALENTED ENGINEER AND THE ARCHITECTURE IS BEAUTIFUL AND IT'S A PLUS FOR THE NEIGHBORHOOD AND I'D LIKE TO POINT OUT WE WERE INVOLVED IN THE BERKELEY COMMUNITY AND GAP IMPROVED THE PROJECT IN 2025 AND TRUST YOU'LL HELP THEM MOVE FORWARD WITH THE PROJECT.

>> AND AS A KEITH AVENUE NEIGHBOR I'M CONCERNED ABOUT DOMINO EFFECT AND GRABBING LAND VIA LAWSUITS FROM UPHILL NEIGHBORS IN THE WELL KNOWN SLIDE ZONE. THE NEIGHBORS SHOULD NOT BUILD A NEW HOME ON UNDISPUTED PROPERTY. IF THEY BUILD WITHIN THE BOUNDARIES OF THE NON-DISPUTED LOSS NOBODY WOULD ADD TO THE DESIGN. IT'S NOTHING ABOUT THE APPEARANCE OF THE HOUSE OR MATERIALS BUT ABOUT THE LOCATION AND ENCROACHES ON AN A DISPUTED AREA AND IF THEY MOVE THE HOUSE OUT OF THE DISPUTED STRIP OF LAND THE PROPERTY COULD BE RESOLVED BETWEEN THE TWO NEIGHBORS AND WON'T BE THE ISSUE MUCH PROPERTY LINE LAWSUITS.

>> Mayor A. Ishii: THANK YOU.

>> I LIVE UP THE BLOCK. I'M ALSO CONCERNED ABOUT THE PROPERTY LINES SO FOR THE LAWSUIT I'D LIKE IT TO COMPLETE UNTIL A JUDGMENT IS MADE AND WOULD LIKE TO YIELD THE REST OF MY TIME TO MY NEIGHBOR.

>> Mayor A. Ishii: I LIVE AT 1060 KEITH AVENUE FIVE UP FROM THE PROPOSED PROJECT AND I OPPOSE IT. THE NEIGHBORS BOUGHT THE

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PROPERTY HERE AND THEN TORE DOWN A FENCE AND DECIDED TO BUILD THEIR NEW HOUSE IN THE DISPUTED AREA. THE ONLY JUSTIFICATION THEY'VE GIVEN FOR CLAIMING THEY OWN THAT DISPUTED AREA IS A SURVEY THAT SAYS ON IT IT'S VERY LIKELY TO BE OFF BY FIVE FEET OR MORE IN MAGNITUDE AND THAT'S BECAUSE THE GROUND HAS MOVED SIGNIFICANTLY OVER THE LAST HUNDRED YEARS NO MATTER WHAT THEY SAY. IT'S ABSURD TO SUGGEST THE GROUND AROUND THAT HOUSE HASN'T MOVED. WHY IS THIS MY PROBLEM OR THE CITY'S PROBLEM? ONE OF THE ZAB MEMBERS SUGGEST THE NEIGHBOR WILL LOSE MORE THAN 10 FEET SHOULD GET HIS OWN SURVEY WHICH WOULD HAVE A DISCLAIMER AND SUE HIS NEIGHBOR AND SO ON UNTIL EVERYONE GETS THEIR 10 FEET OR MORE BACK. THERE'S MANY REASONS THAT'S A TERRIBLE IDEA BUT THE ONE THE CITY SHOULD BE INTERESTED IN IS UP THE HILL IS EUCLID AVENUE. AND THE LAST PERSON WOULD BE SUING THE CITY OF BERKELEY TO MOVE EUCLID AVENUE BY 10 FEET TO GET HIS PROPERTY BACK. I DON'T THINK THAT'S SOMETHING THE CITY HAS THE MONEY TO DO AT THIS POINT. JUST THE LOCATION IS THE ONLY PROBLEM. THEY'RE BUILDING IT ON THEIR NEIGHBOR'S PROPERTY AND THERE'S A PENDING LAWSUIT BETWEEN THE TWO PARTIES AND I THINK NO PERMIT SHOULD BE ISSUED TO BUILD ANYTHING UNTIL THAT LAWSUIT IS RESOLVED. THANK YOU.

>> HI. I HOPE YOU ALL ARE DOING WELL. MY NAME IS ALEX KINES I'M AT FRESHMAN AT BERKELEY HIGH. MY FAMILY MOVED TO BERKELEY IN

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2017 WHEN I WAS IN FIRST GRADE. MY MOTHER IS A CIVIL ENGINEER. SINCE I WAS A LITTLE GIRL MY MOTHER AND GRANDMOTHER HAVE TAKEN ME ON ARCHITECTURE TOURS AROUND THE BAY AREA. THIS LARGELY INSPIRED MY MOM AND ME AS A YOUNG CHILD. THIS HOME COULD ONLY BE AN IMPROVEMENT TO MY NEIGHBORHOOD. THANK YOU.

>> IT'S ALWAYS GREAT TO HAVE YOUNG PEOPLE COME AND SPEAK AT MEETINGS.

>> I'M HERE TO SUPPORT THEM MANY YEARS AND KNOW THEM TO BE DEEPLY SERIOUS CAREFUL PEOPLE. I KNOW THE CURRENT HOUSE THEY RENOVATED IS BEAUTIFUL AND HAVE EVERY CONFIDENCE THE NEW BUILDING WILL BE A CREDIT TO BERKELEY. ONE MORE COMMENT I LIVE AROUND THE CORNER ALSO IN THE SLIDE ZONE. MY HOUSE MOVED ABOUT TWO INCHES IN 19 YEARS. I FIND THE IDEA THE HOUSE IS MOVING 20 FEET IS ABSURD.

>> THANK YOU.

>> I LIVE ON THE NORTH SIDE AND WANT TO MAKE POINTS ABOUT THE PROJECT ITSELF. IT WILL REMOVE 228 CUBIC YARDS OF SOIL AND THAT'S THE WEIGHT OF A TWO STORY HOUSE. IF THERE'S CONCERNS ABOUT SLIDES THE PROJECT SHOULD BE GAUGED FOR DELOADING THE HILLSIDE. SECONDLY THE HOUSE IS SUNK SO IT GETS TWO STORIES FOR A SEVEN-FOOT HEIGHTENED INCREASE AND THERE'S BEEN NO ACTIVE SLIDE ZONES IN THE AREA SURVEYED AND NO ISSUES WITH THE LOT LINES. I'M SUPPORTING THE PROJECT AS AN EXAMPLE OF RESPONSIBLE

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DEVELOPMENT IN BERKELEY.

>> Mayor A. Ishii: THANK YOU.

>> THE APPLICATION TO REBUILD 1048 KEITH AVENUE. LINDSEY IS A TALENTED ENGINEER AND NOT ONLY UNDERSTANDING BERKELEY SOIL AND ARCHITECTURE BUT UNDERSTANDS CULTURE. SHE'S AN ARTIST WITH AN EYE WITH INTEGRITY AND HER DESIGN CONCEPT IMPROVES THE NEIGHBORHOOD IN AN ORGANIC NEIGHBORHOOD AND INCORPORATES INTO LANDSCAPE TO MAKE IT MORE BEAUTIFUL. HER CAREFUL ENGINEERING HAS UTMOST RESPECT FOR THE SURROUNDING AND WHEN WE TALK ABOUT SLIDING LAND AND I'M NOT AN ENGINEER BUT IT SOUNDS LIKE NEW CONSTRUCTION WILL HAVE LESS CHANCE OF SLIDING OVER THE YEARS THAN DILAPIDATED PROPERTY THAT IS FALLING APART. LINDSEY IS VERY TALENTED. I'VE BEEN TO HER HOUSE MANY TIMES AND SHE'S VERY SPECIAL. THANK YOU.

>> Mayor A. Ishii: THANK YOU. YOUR TIME STARTS WHEN YOU START SPEAKING. GO AHEAD.

>> I LIVE AT 1005 KEITH. I'M NOT REALLY IN THE FIGHT BUT I LIVE ON THE DRY STONE ROCK SIDE OF KEITH. WE ONLY SLIDE ABOUT A QUARTER OF AN INCH OPPOSED TO THE DOWN HILL, WHICH SLIDES SOMETIMES A FOOT A YEAR OR INCHES. IT SOUNDS TO ME LIKE EVERYTHING WAS DEPENDENT ON THE SURVEY AND I'VE BEEN TRYING TO GET A SURVEY FOR SIX MONTHS BECAUSE I'M PUTTING UP A NEW FENCE THAT'S ROTTING AND HAVE A PERSNICKETY NEIGHBOR AND I CALLED FDR

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ENGINEERING AND CALLED EVERY SURVEY PLACE I COULD FIND. I ASKED MORAN FOR RECOMMENDATIONS. THEY GAVE TWO. THEY WOULDN'T DO IT. I CAN'T GET A SURVEY. I CAN'T GET ANYBODY TO CONFIRM IT WITHIN ONE PERSON OR ONE COMPANY TOLD ME 25 FEET. THE OTHER SAID WE CAN'T RETAIN ANY SURVEY, IF YOU'RE DEPENDING ON JUST THAT SURVEY, I WANT TO KNOW HOW THEY GOT ONE BECAUSE I CAN'T. MAKE THERE'S SOMETHING SPECIAL BECAUSE YOU'RE A DESIGNER AND ALL.

>> Mayor A. Ishii: THANK YOU.

>> I LIVE DIRECTLY ACROSS THE STREET. AND THE HOME THEY DESIGN AND THE NEW HOME WILL BE BEAUTIFUL. THEY'RE INCREDIBLE PEOPLE AND THEY'RE VERY FORTUNATE TO HAVE THEM. THANK YOU.

>> Mayor A. Ishii: THANK YOU. I THINK WE HAVE A COUPLE FOLKS ONLINE.

>> FIRST SPEAKER ON ZOOM IS LEE BRIDGES.

>> I OWN 1054 KEITH AND SUPPORT THE APPEAL. I'M SURE THE PROPOSED HOUSE IS GORGEOUS. THAT'S NOT WHAT THIS IS ABOUT. IT'S ABOUT THE LOT LINES. I DON'T KNOW WHO SAYS THERE'S NOT BEEN SLIDE HAVE A SATELLITE PHOTO AND THERE'S NO COMPARISON. ON THE NORTH SIDE THERE'S ROCK. IT HASN'T MOVED. THE SOUTH SIDE THE LOTS ARE DOING LEGS. IF WE GO BACK TO THE ORIGINAL LOT LINES, BARE UM TAKES MY OFFICE AND I TAKE ANTHONY'S GARAGE. SOME ORIGINAL LINES SPLIT THOSE PROPERTIES IN TWO. I UNDERSTAND ZAB DIDN'T HAVE THE AUTHORITY TO MAKE THE DECISION BECAUSE THEY

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CANNOT RESURVEY THE AREA. FOUR PROFESSIONAL SURVEYS LAUGHED AT ME AND SAID THEY COULDN'T DO IT. WE CANNOT APPROVE A PROJECT ON AN UNSTABLE LOT LINE AND PAUSE THE LAWSUIT FENCING.

>> Mayor A. Ishii: THANK YOU.

>> Clerk: NEXT SPEAKER IS KELLY HAMMERGRIN.

>> THIS IS A SINGLE-FAMILY HOME YOU'RE NOT REQUIRED TO APPROVE IT. THIS AREA IS MAPPED AS A LANDSLIDE AREA BY THE DEPARTMENT OF CONSERVATION OF CALIFORNIA GEOLOGICAL SURVEY. AND IT'S A CALLED THE BERKELEY TRIFECTA. AND THERE'S A FIRE SEVERITY ZONE AND IT'S IN A LANDSLIDE AREA. WHY THIS IS MOVING FORWARD TO ME IS CRAZY. AND WHEN I WENT TO THE FIRST MEETING, I DESCRIBED TO OTHER PEOPLE WHAT MAKES BERKELEY S ENTERTAINING IS WHAT HAPPENED THAT NIGHT PEOPLE TALK ABOUT THEIR HOUSES MOVING AND SOMEBODY WANTS TO BUILD A BRAND NEW HOUSE WITH A LANDSLIDE. THIS IS ALL CRAZY. NOBODY KNOWS WHERE THE LOT IS.

>> NEXT SPEAKER IS JOHN DABKE.

>> I LIVE ACROSS THE STREET FROM THE APPELLANT AND ON THE OTHER SIDE WE'RE LESS AFFECTED BY THE SLIDE BUT WHEN I FIRST MADE AN OFFER ON MY HOUSE I HIRED A GEOTECHNICAL ENGINEER WHO TOLD ME IF I'D GIVEN THEM AN EVEN ADDRESS ON THAT STREET HE WOULD NOT HAVE COME. WE ALL KNOW THE SLIDE HAS BEEN HAPPENING FOR DECADES AND THE PROSPECT OF THE DOMINO EFFECT THAT MANY OF MY NEIGHBORS WILL FACE FROM THIS DECISION IS TERRIFYING THAT THAT PRECEDENT WILL

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BE SET AND I HAVE RESPECT FOR HER DESIGN ABILITIES BUT I ASK THE CITY IF IT'S NOT THE RESPONSIBILITY TO LOOK AFTER THE PRECEDENT FOR ALL THEN WHO WILL PREVENT A CHANGE OF LAWSUITS FROM TAKING PLACE? THANK YOU.

>> THERE'S NO MORE RAISED HANDS.

>> Mayor A. Ishii: OKAY. WE'RE GOING TO TAKE COUNCIL QUESTIONS ONLY STARTING WITH COUNCILMEMBER TAPLIN.

>> T. Taplin: THANK YOU VERY MUCH. I HAVE TWO QUESTIONS FOR THE APPLICANT. WOULD IT BE POSSIBLE TO SHARE YOUR SLIDE DECK AND MATERIALS AND THE LAST PRESENTATION WAS CUT OFF AND WONDERING IF WE COULD HEAR YOUR LAST SENTENCE?

>> I BELIEVE YOU WANTED TO ADDRESS THE CLAIMS OF THE APPELLANT.

>> I CAN READ THAT PART AND THEN THE NEXT SENTENCE. THE APPELLANT SUBMITTED A GEOTECHNICAL REPORT AND ADDENDUM TO THE CITY WHICH CONCLUDES THE SITE IS NOT PART OF THE ACTIVE SLIDE AND THE OWNER HAS NOT SUPPLIED A COMPETING SURVEY OR ANY ACTUAL EVIDENCE. AS TO THE NEED OF THE LOT LINE ADJUSTMENT THE APPELLANT ADMITTED THE ENCROACHMENT FROM HIS UPHILL NEIGHBOR IS DUE TO UNPERMITTED ADDITION AT 1054 KEITH. THAT NEIGHBOR'S TRESPASS ON TO 1050 KEITH DOES NOT JUSTIFY 1050 KEITH'S UNIT SUPPORT THE CLAIM AND ENCROACHMENT AND THERE IS NO NEED FOR A PROJECT TO BE DELAYED ON THE BASIS OF ONGOING LAWSUIT. THE APPELLANT PREVIOUSLY FILED FOR AN INJUNCTION TO HELP THE PROJECT

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AS PART OF HIS LAWSUIT BUT WAS DENIED ON PROCEDURE GROUNDS. THE APPELLANT SHOULD RENEW HIS CHALLENGES INSTEAD OF REQUESTING THE CITY TO ADDRESS THE LOT LINE ADJUSTMENT UNDER THE GUISE OF LOT LINE ADJUSTMENTS.

>> Mayor A. Ishii: COUNCILMEMBER TREGUB. DON'T GO TOO FAR IN CASE WE HAVE OTHER QUESTIONS.

>>

>> I. Tregub: I WAS LOOKING AT THE ADMINISTRATIVE RECORD BECAUSE I WAS CURIOUS FOR THE REASONS FOR THE ASCENDING OPINION ON ZAB BY COMMISSIONER SANDERSON AND STARTS ON 180 OF THE RECORD. SO MY QUESTION FOR STAFF IS IF YOU CAN PROVIDE SOME BACKGROUND OF THE EXTENT TO WHICH HAS BEEN THE PRACTICE TO MAKE RECOMMENDATIONS BASED ON LOT LINE SURVEYS HOW THAT RELATES OR DOES NOT RELATE TO A NON-DETRIMENT FINDING AND IF THERE ARE ALTERNATIVE METHODOLOGIES IN SITUATIONS LIKE THIS.

>> I'LL SAY FIRST, SUBMITTAL OF A SURVEY IS PART OF THE REQUIREMENTS. I'M NOT AWARE OF OTHER PRACTICES FROM OTHER JURISDICTIONS WE CAN SITE AS PRECEDENT.

>> I'M NOT AWARE AND TO ADDRESS COMMISSIONER SANDERSON AND HER VOTE EARLIER THIS YEAR, SHE WE HAVE A PLANNING MANAGER THERE'S ONGOING ISSUE THAT HAVEN'T BEEN ADDRESSED OR RESOLVED THROUGH ONGOING CITY POLICY. IT'S A FRUSTRATION IS THE HAD HAD THAT WE CONTINUALLY END UP IN THE SITUATION WHERE AN APPLICATION COMES

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IN AND IT'S EVALUATED. WE HAV

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>> I. Tregub: BUT YOU'RE NOT AWARE CURRENTLY OF ANY OTHER METHODOLOGIES IN ANY OTHER CITIES TO RESOLVE THEM?

>> NO.

>> WE'RE AWARE OF BROADER POLICY CALLED GEOLOGIC HAZARD ASSESSMENT DISTRICT. THERE'S SEVERAL IN THE AREAS FOR EXAMPLE SAN LEANDRO HAS ONE AND FOLLOWS A KNOWN SLIDE AREA AND THERE'S A GUIDING PLAN REQUIRED IT'S A SPECIAL DISTRICT SO IT DOESN'T FOLLOW ENTITLEMENT REVIEW WHICH IS BEFORE YOU TONIGHT BUT IS A BROADER MECHANISM USED BY OTHER AGENCIES.

>> I. Tregub: THANK YOU. I DON'T WANT TO PUT WORDS IN YOUR MOUTH BUT CAN YOU SPEAK TO HOW THE NON-DETRIMENT FINDING WAS MADE?

>> THIS IS BASED ON THE SUBJECT PROPERTY AND THE SPECIFIC TOPOGRAPHICAL SURVEY REVIEWED BY THE BUILDING DEPARTMENT AND BASED ON THE SUBJECT PROPERTY CONDITIONS AND OVER ALL EFFECT THE SURROUNDING NEIGHBORHOOD RELATIVE TO THE REASONABLE DEVELOPMENT THAT'S BEEN PROPOSED ON THE SITE. WHAT'S BEING DEMOLISHED IS A SINGLE-FAMILY DWELLING AND IN ITS PLACE IS A REASONABLE DEVELOPMENT OF APPROXIMATELY THE SAME SIZE.

>> FOLLOWING UP ON THE LINE OF QUESTIONS BECAUSE I FIND IT INTERESTING HOW WE DETERMINE THE NON-DETRIMENT FINDING IT'S BASED ON THAT PARTICULAR PROPERTY FOLLOWING THE PARTICULAR RULES AND CONDITIONS AND BASICALLY FAITHFULLY SUBMITTED IN HISTORICAL

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PRACTICE. CAN WE EVALUATE THE DETRIMENT TO THE COMMUNITY FROM THIS DOMINO EFFECT THAT WOULD BE INTRODUCED

>> IF WE ALLOW ONE AND THE NEXT NEIGHBOR PROCEEDS AND THE NEXT NEIGHBOR THINKING LIKE ONE STEP FURTHER ABOUT WHAT HAPPENS FROM A DETRIMENTAL EFFECT IS THAT WAY. HAVE WE THOUGHT ABOUT IT THAT WAY IF THAT MAKES SENSE.

>> WE HAVE RECOGNIZED DIFFERENT AREAS OF THE HILLSIDE HAVE DIFFERENT CONDITIONS WAIVED ON THE SITE BLOCK AND DEPENDS ON THE SIDE OF THE STREET. WE HEARD FROM NEIGHBORS TONIGHT THE NORTH SIDE IS SEPARATE FROM THE SOUTH SIDE AND THAT WOULD REQUIRE A MORE EXTENSIVE STUDY OF THE NEIGHBORHOOD BLOCK BY BLOCK OR AREA TO KNOW EXACTLY WHAT WE'RE DEALING WITH IN TERMS OF THE SOIL CONDITIONS AND WHICH PROPERTIES ARE SLIDING WHERE. IT'S NOT BECAUSE ONE SLIDES IN ONE PROPERTY BUT RELATES TO THE ENTIRE BLOCK OR AREA. A MORE COMPREHENSIVE ANALYSIS OF THE YOU DIFFERENT BLOCKS AND AFFECTED SOIL CONDITIONS ARE NECESSARY BUT THAT'S PART OF WHAT THE ABATEMENT DISTRICTS OR THEO LOGIC ABATEMENT DISTRICT EVALUATES BETWEEN THE PROPERTIES. SO WITHIN THE CONTEXT OF THIS DEVELOPMENT LOOKING AT THE SUBJECT PROPERTY AND THE NEIGHBORHOOD CONTEXT OF CHARACTER AND IF THE DEVELOPMENT FITS WITHIN THE NEIGHBORHOOD, IS WHAT WAS EVALUATED.

>> B. Blackaby: GREAT, THANK YOU. I APPRECIATE THAT. FROM ALL DEPICTIONS AND DESCRIPTIONS, IT LOOKS LIKE AN AMAZING PROJECT.

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IT WOULD BE A BEAUTIFUL ADDITION TO BE CAREFUL ABOUT COMMENTS BEFORE WE CLOSE.

>> B. Blackaby: THANK YOU. I'M THINKING ABOUT THE DETRIMENT IN TERMS OF A BROADER SENSE. WHEN WE TALK ABOUT EXISTING LOT LINES. AGAIN, HELP ME UNDERSTAND IS THAT THIS MAY NOT MODIFY THE EXISTING LOT LINE BUILT HOW I COMPORTS WITH THE COMMUNITY UNDERSTANDING. THE LOT LINE THAT MAY BE UNDERSTOOD OR ACCEPTED BY COMMUNITY STANDARDS OVER TIME MAY BE VERY DIFFERENT THAN THIS PARTICULAR LOT LINE. IS THAT FAIR TO SAY? THE HISTORICAL PIECE OF THIS?

>> THE LOT LINES ARE WHAT IS BEING REVIEWED AS IN THE TITLE REPORT THAT'S DESCRIBED BY MEETS AND BOUNDS. AND THAT'S REPRESENTED IN THE SURVEY. I'M NOT FAMILIAR WITH IF THAT COINCIDES WITH WHAT IS EXPECTED ON SITE. THAT'S A DIFFERENT EVALUATION.

>> I'M NOT SURE IT'S FOR THE COMMUNITY UNDERSTANDING.

>> B. Blackaby: BUT THINKING ABOUT WHAT THE STANDARD IS, IS HELPFUL. IN TERMS OF THE PROCESS OF FILING AN APPEAL, IF A NEIGHBOR DOES FILE AN APPEAL, WHAT'S TYPICALLY NECESSARY? THEY CAN FILE AN APPEAL LETTER AND SAY I OBJECT TO THIS PERSONALLY? IT ONLY TAKES ONE NEIGHBOR TO FILE AN APPEAL.

>> ANY PARTY CAN.

>> B. Blackaby: IS IT TYPICAL YOU'D GET AN APPEAL LETTER SOUND

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BY 45 NEIGHBORS.

>> YES.

>> B. Blackaby: IN THIS CASE IT DOES FEEL LIKE THERE'S A NUMBER OF PEOPLE AS WE SAW TONIGHT THAT ARE ALSO INTERESTED. I THINK THAT'S IT FOR QUESTIONS. THANK YOU FOR THE CLARIFICATION.

>> Mayor A. Ishii: THANK YOU, COUNCILMEMBER TAPLIN. DO YOU HAVE ADDITIONAL QUESTIONS? VERY GOOD. THERE'S A MOTION TO CLOSE THE PUBLIC HEARING. OKAY. UNLESS THERE'S OBJECTIONS TO CLOSE THE PUBLIC HEARING. THE PUBLIC HEARING IS CLOSED. WE'LL NOT BE ASKING ANYMORE QUESTIONS AND MOVING ON TO DELIBERATIONS. IN THAT CASE COUNCILMEMBER TAPLIN DID YOU HAVE COMMENTS?

>> T. Taplin: I WANT TO SPEAK ABOUT HAZARD BECAUSE WE ADOPTED A HAZARD MITIGATION PLAN. THE PLAN UPDATE CITES ONE OF THE CHALLENGES IS THEY'RE GREATER HAZARD THAN UNDER NEW MODERN STANDARDS. I WANTED TO SHARE THAT WITH THE COMMUNITY. I WANTED TO SAY THAT US UPHOLDING THE APPEAL WOULD MAKE ANY OF THE EXISTING HOMES SAFER OR MAGICALLY PROTECT THEM FROM LANDSLIDE. I WANT TO LEVERAGE THE CITY'S DISCRETION AS PART OF THAT AND WANT TO THANK THE APPLICANT FOR YOUR BREADTH OF OUTREACH TO THE NEIGHBORS. THE SENSITIVITY YOU GAVE TO THE HISTORY OF THE NEIGHBORHOOD AND CITY AND ATTENTION TO MODERN STANDARDS AND FOR YOUR GENEROSITY AND SHARING YOUR FAMILY AND PERSONAL HISTORY AND I'LL BE SUPPORTING THE ZAB RECOMMENDATION. THANK YOU.

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>> Mayor A. Ishii: COUNCILMEMBER TREGUB.

>> I. Tregub: THANK YOU. THIS IS AN INTERESTING CASE. I'M HARD PRESSED TO THINK OF A ZONE BOARD HEARING OR APPEAL I'VE DEALT WITH THAT DEALS WITH THIS PARTICULAR SET OF ISSUES. WE ARE AS A COUNCIL LEGALLY BOUND TO AUTO PROVE PROJECT BASED ON -- IF WE CAN MAKE A NON-DETRIMENT FINDING OR AGREE WITH THE ZONING BOARD THAT DID ALBEIT, NOT UNANIMOUSLY BUT BY SUPER MAJORITY MAKE THE NON-DETRIMENT FINDING BASED ON THE INDIVIDUAL ATTRIBUTES OF THE PROJECT. IT COULD BE A SLIPPERY SLOPE IF WE START TO CREATE INADVERTENTLY A NEW PRECEDENT TONIGHT ON THE DAIS BY DOING THAT LOOKS AT THE DOMINO EFFECT THAT HAS BEEN TALKED ABOUT. AND I CERTAINLY DON'T WISH TO DISMISS THE CONCERNS OF THE APPELLANTS OUT OF HAND. SENSE THIS IS SOMETHING IN THE LEGISLATION ARENA AND INTERESTED IN HEARING ABOUT THE PRESENCE OF THE GEOLOGIC HAZARD ASSESSMENT DISTRICTS AND THAT IS SOMETHING THAT I WOULD BE CURIOUS TO LEARN MORE ABOUT THAT SAID I THINK WE'RE PRETTY WELL CIRCUMSCRIBED BY THE LIMITATIONS OF HOW WE ARE ABLE TO RULE ON THIS TONIGHT WITH THE UNDERSTANDING THAT THERE'S A PENDING APPEAL IN THE COURTS OR COURT HEARING ANYWAY AND WOULD BE UP TO THE COURTS TO LOOK AT SOME OF THESE ATTRIBUTES THAT WOULD NOT BE WITHIN OUR ABILITIES OR POWERS TO ADDRESS HERE TONIGHT. THANK YOU.

>> Mayor A. Ishii: THANK YOU. COUNCILMEMBER HUMBERT.

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>> M. Humbert: THANK YOU, MADAME MAYOR. IT'S NOT IN MY DISTRICT. I'D LIKE TO GIVE COUNCILMEMBER BLACKABY BE AN OPPORTUNITY TO SPEAK BEFORE I DO.

>> B. Blackaby: THANKS, COUNCILMEMBER HUMBERT. I HAVE REAL CONCERNS ABOUT THE PRESIDENT WE DO SET AND DO BELIEVE WE HAVE DISCRETION. IT'S NOT A MULTI-FAMILY PROJECT BUT SINGLE FAMILY. IT'S A NEIGHBORHOOD THAT HAS DEALT WITH THESE LANDSLIDE ISSUES FOR DECADES IN A GENERALLY COMMUNITY ACCEPTED PROCESS OF RESPECTING WHERE THE LINES HAVE SETTLED. IN TERMS OF COMMUNITY COHESION AND THE GOOD OF THE COMMUNITY AND RESPECTING NEIGHBORS IN THE ABSENCE OF POLICY FEELS LIKE A GOOD PLACE TO BE. I KNOW THE LETTER OF THAT IS HARDER TO DEFINE BUT I APPRECIATE THE COMMUNITY STANDARD IN THIS NEIGHBORHOOD AND OTHER NEIGHBORHOODS IN THE HILLS WHERE WE DEAL WITH THOSE ISSUES. I HAVE RESPECT AND APPRECIATE THE DESIRE AND THE PROJECT AND THAT WOULD BE AN IMPROVEMENT OVER WHAT'S THERE BUT ALSO RESPECT THE INTEREST OF THE NEIGHBORS WHO HAVE SORT OF LIVED IN THESE CONDITIONS FOR A WHILE AND HAVE HOUSES ON THESE LOTS WHERE LINES HAVE MOVED AND IF THEN ALL OF A SUDDEN THE GAME CHANGES -- ANYWAY, I HAVE REAL CONCERNS. MY THOUGHT PROCESS IS MORE THAT I THINK WE SHOULD ASK -- I'M INTENDING TO ASK -- I INTEND TO ASK ZAB TO LOOK AT THE COMMUNITY DETRIMENT FINDING IN A BROADER WAY. AND I PEOPLE LIKE IT WARRANTS ADDITIONAL ATTENTION AND DATA. SO THAT'S KIND

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OF WHERE MY HEAD'S AT AND THAT WOULD BE MY INTENTION TONIGHT.

>> Mayor A. Ishii: BACK TO COUNCILMEMBER HUMBERT AND COUNCILMEMBER BARTLETT DID GET SKIPPED. HE GOT SKIPPED WHEN YOU JUMPED TO COUNCILMEMBER BLACKABY.

>> M. Humbert: SORRY, MY APOLOGIES. I GUESS I WANT TO START OUT BY ACKNOWLEDGING COUNCILMEMBER BLACKABY'S CONCERNS AND THERE'S SOMETHING THERE. UNFORTUNATELY, I DON'T THINK IT'S WITHIN THE BAILIWICK JURISDICTION OF ZAB OR THE COUNCIL AT THIS JUNCTURE, THIS POINT IN TIME. I WOULD ALIGN MY COMMENTS WITH THOSE OF COUNCILMEMBER TREGUB. I REVIEWED THE STAFF REPORT AND ADMINISTRATIVE RECORD FOR THE PROJECT AND I FIND NOTHING THERE THAT INDICATES THIS WAS WRONGLY ADJUDICATED BY THE ZONING ADJUSTMENTS BOARD. MY UNDERSTANDING IS THE SITE HAS BEEN SURVEYED AND HAS NOT MATERIAL ISSUES WITH RESPECT TO THE ZONING ISSUE. MY READ IS THE KEY QUESTION IS WHETHER THE REAR SETBACK IS JUSTIFIED FOR CRITERIA AND PURPOSES BUT I BELIEVE ZAB RIGHTLY FOUND THE ENCROACHMENT AND IT WAS BE AN ADJUSTMENT GIVEN THE TOPOGRAPHY OF THE LOT AND CONSISTENT WITH EXISTING LAYOUT OF STRUCTURES ON THE SITE. THOUGH IT'S NOT STRICTLY GERMANE TO THE ZONING QUESTION WE'RE BEING ASKED TO ADJUDICATE IT'S MY UNDERSTANDING THE APPLICANT REFERRED WITH NEIGHBORS AND ADDRESSED CONCERNS. IF ANYTHING THIS REENFORCES THE ZAB'S FINDING OF NON-DETRIMENT AND I'LL BE VOTING TO AFFIRM THE ZAB'S

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DECISION AND DENY THE APPEAL.

>> B. Bartlett: THANK YOU BOTH SIDES FOR COMING AND STAFF FOR YOUR DILIGENT WORK. AND THERE'S AN ARCHITECTURAL AND PLANNING NUANCES THAT IT'S ALMOST NOT AN APPROPRIATE VENUE AND ASKED TO OVERRIDE THE STAFF RECOMMENDATION THE DILIGENT FOCUS IT'S A BIG LEAP AND HAS TO BE GLARING. AND BECAUSE OF THE PROPERTY LINE ISSUE I REMEMBER HEARING THE DEED DID STATE THERE'S SOME DRIFT POSSIBLY SO MANY FEET. AND IT SEEMS LIKE THIS IS SOMETHING THE COURTS SHOULD FIGURE OUT. IT DISPUTES MY NEIGHBORS AROUND PROPERTY LINES, THEY'RE VERY COMMON BUT IN MY PURVIEW AND OUR PURVIEW TONIGHT I DON'T SEE HOW WE COULD VOTE AGAINST THIS WITH ANY PROPERTY BASIS AND POWERS AND I'M CURIOUS ABOUT THIS JIHAD THE GEOLOGIC HAZARD ASSESSMENT I'D LIKE TO LEARN MORE AND EXPLORE THAT FOR OUR CITY. BUT THANK YOU. I'LL BE VOTING TO MAINTAIN THE DECISION. AS IT SAYS IN THE REPORT THE CITY OF BERKELEY DOES NOT HAVE JURISDICTION OVER PROPERTY LINE DISPUTES AS THEIR CIVIL MATTERS BETWEEN PROPERTY OWNERS. I APPRECIATE STAFF AND UNDERSTAND THAT WHEN IT COMES TO NEIGHBORHOOD DISPUTES THINGS CAN GET QUITE INTENSE SO I JUST WANT TO ACKNOWLEDGE THERE'S CLEARLY A LOT OF FEELINGS AROUND THIS AND I HOPE YOU ALL ARE ABLE TO COME TOGETHER AFTER THIS AS A NEIGHBORHOOD BECAUSE WE ALL STILL LIVE NEAR EACH OTHER AND SMALL COMMUNITY SO I HOPE YOU'LL HAVE OPPORTUNITIES TO HEAL AND RECOVER FROM THE

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SITUATION. WITH THAT I WILL ASK IF THERE SAY MOTION.

>> M. Humbert: YOU'LL MOVE TO DENY THE APPEAL AND AFFIRM THE ZAB DECISION.

>> Mayor A. Ishii: A SECOND FROM KESARWANI. I THINK WE SHOULD TAKE ROLL ON THIS.

>> Clerk: ON THE MOTION TO AFFIRM THE ZONING BOARD DECISION AND DEFY THE APPEAL. KESARWANI. YES. LUNAPARRA. YES. BLACKABY. NO. ISHII. YES.

>> Mayor A. Ishii: THANK YOU FOR BEING HERE THIS EVENING AND THANK YOU STAFF FOR YOUR REPORT AND NOW THAT WE HAVE FINISHED OUR ACTION CALENDAR ARE THERE PUBLIC COMMENT ON ITEMS NOT LISTED ON THE AGENDA? CAROLE'S COMING UP TO THE MIC.

>> I'M SPEAKING ON MY INDIVIDUAL CAPACITY NOT ON BEHALF OF THE PEACE AND JUSTICE COMMISSION BUT REGARDING SOMETHING THAT HAPPENED TRANSPIRED TO VOTE LAST NIGHT I WAS IN THE DISSENT WITH FOUR OTHER COMMISSIONERS SO I'M NOT SPEAKING ON BEHALF OF THE COMMISSION. BEFORE I TALK TO THE ACTUAL VOTE I ATTEMPTED TO BRING AN ALTERNATE RESOLUTION.

>> Mayor A. Ishii: FOLKS, KEEP IT DOWN.

>> IT WOULD HAVE SUPPORTED THE CITY'S EFFORTS ON THE LEGAL DEPORTATION FUND WAS INTRODUCED BY COUNCILMEMBER BLACKABY AND THE MAYOR'S EFFORTS ON THE IMMIGRATION AND THIS CRITICAL IMPORTANCE CITY AS WELL AS ATTACK TO PROVIDE EDUCATION AND REFER

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TO THE CITY MANAGER TO HAVE COMMUNITY EDUCATION -- IT'S ASKING IN A LENGTHY RESOLUTION FOR THE COUNCIL TO -- I'M TRYING TO RECALL THE WORD TO WRITE A LETTER TO PRESIDENT TRUMP AND VICE PRESIDENT VANCE AND TO ENDORSE THE NEIGHBORS AND I'M CONCERNED THAT WE FOCUS ON OUR LEGAL STRENGTHS AND OUR LEGAL -- OUR LOCAL STRENGTHS --

>> Mayor A. Ishii: I'M SORRY YOUR TIME IS UP.

>> IF I CAN CONCLUDE BRIEFLY.

>> Mayor A. Ishii: I'M SORRY. YOU'VE HAD TWO MINUTES. THANK YOU.

>> Clerk: WE HAVE TWO HANDS RAISED ON ZOOM. FIRST IS LEE BRIDGES. AND YOU KNOW, AND TO ENDORSE THE NEIGHBOR, BUT ENEMIES. AND NEIGHBORS, NOT ENEMIES ACT. WHICH HAS BEEN SITTING IN CONGRESS FOR TWO YEARS SINCE THE BIDEN ADMINISTRATION, STALLED IN JUDICIARY. I'M REALLY CONCERNED WE FOCUS ON OUR LEGAL STRENGTHS; I MEAN OUR LOCAL STRENGTHS AND LEGAL --

>> Mayor Ishii: THANK YOU, CAROL, YOUR TIME IS UP.

>> CAN I CONCLUDE BRIEFLY?

>> Mayor Ishii: NO, SORRY. YOU HAVE HAD TWO MINUTES.

>> City Clerk: LOOKS LIKE WE HAVE TWO HANDS RAISED ON ZOOM. FIRST IS LEE BRIDGES.

>> YES, CAN YOU HEAR ME?

>> City Clerk: YES.

>> SO BRIEFLY, I JUST WANT TO CORRECT FOR THE RECORD, I AM THE

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OWNER OF 1054 KEEFE, AND THE APPLICANTS FOR THE PROJECT AT, --

>> Mayor Ishii: IS THIS SOMETHING ON THE AGENDA, WE ALREADY CLOSED THAT CONVERSATION.

>> THIS IS A FACTUAL CORRECTION, VERY BRIEFLY.

>> Mayor Ishii: SORRY, YOU CAN'T SPEAK TO AN ISSUE THAT'S ALREADY BEEN HEARD.

>> City Clerk: NEXT IS TONI.

>> GOOD EVENING, COUNCIL. GETTING BACK TO BERKELEY CITY HISTORY, I WOULD LIKE TO TELL YOU ABOUT ONE OF THE GREATEST MAYORS IN BERKELEY HISTORY WHICH IS LOUIE BARTLETT FROM 1919-1923. HE OVERTURNED WHAT THE REAL ESTATE INTEREST TRIED TO GET THROUGH TO MAKE ELMWOOD PARK SINGLE FAMILY. YOU HEARD ABOUT THIS, THEN HE PASSED THE FIRST COMPREHENSIVE ZONING ORDINANCE FOR THE CITY OF BERKELEY, ORDINANCE 666, NOT PERFECT, BUT IT WAS RATIFIED BUT A VOTE OF THE PEOPLE. WHAT IS SO INTERESTING ABOUT ORDINANCE 666 IS THAT IT WAS PASSED JUST BEFORE THE BERKELEY FIRE OF SEPTEMBER 7th, 1923, WHICH DESTROYED 600 BUILDINGS. SO WHEN BERKELEY HAD TO REBUILD NORTHEAST BERKELEY, IT WAS ACCORDING TO THAT ZONING ORDINANCE AND THAT'S THE THING ABOUT THE ZONING ORDINANCE. IT SETS UP A PATTERN FOR THE CITY TO REBUILD AFTER A GREAT DISASTER. LEWIS BARTLETT STARTED THE CITY MANAGER FORM OF GOVERNMENT AND EAST BAY MUNICIPAL UTILITIES DISTRICT. PAPERS ARE AT U.C. RIVERSIDE. NO ONE HAS WRITTEN A BIOGRAPHY ON LEWIS

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BARTLETT, SO IF THERE'S ANYBODY GETTING A Ph.D..

>> Mayor Ishii: THANK YOU, TONI. MAYBE YOU CAN WRITE US THE STORY. I APPRECIATE THE HISTORY LESSON, ALWAYS. IS THERE ANYONE ELSE ONLINE?

>> City Clerk: NO OTHER.

>> Mayor Ishii: I SEE THERE'S ANOTHER PERSON, IN-PERSON.

>> GO AHEAD AND MOVE THE MIC UP.

>> I'M SPEAKING ABOUT MEDICAL IS HE ADVICES IN OUR CITY. DURING THIS TIME OF FUNDING UNCERTAINTY. E.M.S. ARE A CRITICAL PART OF OUR PUBLIC SAFETY AND HEALTH CARE INFRASTRUCTURE. THIS IS NOT SUSTAINABLE. OUR COMMUNITY DESERVES AN E.M.S. SYSTEM THAT IS EQUIPPED AND ABLE TO RESPOND TO EMERGENCIES. IT WOULD HELP RETAIN PERSONNEL AND REDUCE BURN OUT, WHICH IS A GROWING CONCERN. NON EMERGENCY RESPONSE TEAMS AND INTERVENTIONS. AREAS WHERE POLICING ISN'T ALWAYS AN EFFECTIVE SOLUTION. I ASK YOU TO SUPPORT E.M.S., THANK YOU FOR YOUR TIME AND LEADERSHIP.

>> Mayor Ishii: THANK SO MUCH, APPRECIATE IT. CAROL, YOU ALREADY SPOKE. NO, I'M SORRY.

>> [OFF MIC]

>> City Clerk: YOU ALREADY SPOKE. YOU CAN'T SPEAK AGAIN.

>> Mayor Ishii: ALL RIGHT. I THINK THAT'S IT FOR PUBLIC COMMENT.

>> I MOVE WE ADJOURN.

>> SECOND.

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>> Mayor Ishii: UNLESS THERE ARE ANY OBJECTIONS, WE WILL ADJOURN UNANIMOUSLY.

>> ALL RIGHT, WE ARE ADJOURNED. THANK YOU VERY MUCH. SORRY WE DIDN'T GET A BREAK, BUT I THOUGHT WE WERE REALLY CLOSE TO THE END. [ADJOURNED 8:05 P.M.]

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